Retirement Plan
2025 Termination Amendment Kit

For use with Ascensus' Nonstandardized 401(k) Profit Sharing Plan Documents

GENERAL INSTRUCTIONS

- Failure to complete this amendment properly may result in compliance issues. Terminated plans may still be audited by the IRS and DOL.
- Complete and sign the Ascensus Adoption Agreement Termination Amendment and file it with your other qualified retirement plan documents.
- Review the Ascensus Basic Plan Document Termination Amendment and file it with your other qualified retirement plan documents.
- Complete the Summary of Material Modifications, provide each participant and beneficiary a copy, and file it with your other qualified retirement plan documents.

Please carefully read the remainder of this Amendment Kit for more specific information.

IMPORTANT NOTE REGARDING THIS TERMINATION AMENDMENT

In general, plans must be amended to reflect how they are being operated and to include all additional required items prior to being terminated. This Termination Amendment is meant to be used to timely amend terminating plans for recent legislative, regulatory, and other qualification-related items that are not yet formally included in the plan documents themselves.

Ascensus Adoption Agreement
Termination Amendment

This amendment of the Plan (hereinafter referred to as the "Amendment") is comprised of this Adoption Agreement Termination Amendment and the corresponding Basic Plan Document Termination Amendment. The Amendment is intended to provide good faith compliance with the requirement that a terminating plan must accurately reflect the provisions under which it is operating as of the termination date. Except as otherwise specified in the Adoption Agreement Termination Amendment, the Amendment provisions are effective as provided in the Basic Plan Document Termination Amendment. This Amendment supersedes the existing provisions of the Plan to the extent that those provisions are inconsistent with the provisions of the Amendment.

EMPLOYER INFORMATION

Name of Plan _____

Plan Sequence Number _____ Trust Identification Number *(if applicable)* _____ Account Number _____

PART ONE: BIPARTISAN BUDGET ACT OF 2018

☐ **Not applicable. The Plan has already been amended for the Bipartisan Budget Act of 2018 (BBA).**

NOTE: *If this option is selected, leave the remainder of this Part One blank and proceed to Part Two.*

DISTRIBUTIONS AND LOANS

Part A. Hardship Availability for QNECs, QMACs, and Safe Harbor Contributions

Will an Employee be entitled to request a hardship distribution of their Individual Account attributable to Qualified Nonelective Contributions, Qualified Matching Contributions, Basic Matching Contributions, Enhanced Matching Contributions, Safe Harbor Nonelective Contributions, QACA Basic Matching Contributions, QACA Enhanced Matching Contributions, and QACA Safe Harbor Nonelective Contributions, including any earnings thereon *(select one and complete)*?

Option 1: ☐ No.

Option 2: ☑ Yes.

This Part A is effective 01/01/2019. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2019.)*

NOTE: *If no option is selected, Option 2 will apply. Selection of Option 1 will not change the elections for hardship distributions of Elective Deferrals, Matching Contributions, and Employer Profit Sharing Contributions that were made pursuant to Section Five, Part A, item (2)(b) of the Adoption Agreement, as applicable.*

Part B. Additional Conditions for Hardship Withdrawals

In addition to the conditions described in Plan Section 5.01(C)(2)(a)(i)-(iii), will an Employee be required to satisfy additional conditions to be eligible for a hardship distribution *(select one and complete, if applicable)*?

Option 1: ☐ Yes, the following additional conditions apply *(select all that apply and complete, if applicable)*:

- ☐ Loans Prior to Hardship Distributions. An Employee will be required to obtain all nontaxable loans under all plans maintained by the Employer.
- ☐ Other Conditions.

_____

_____.

(Specify one or more additional condition(s) (e.g., a minimum distribution amount, an annual limit on the number of hardship withdrawals in a Plan Year). Such condition(s) must be applied in a uniform and nondiscriminatory manner.)

Option 2: ☑ No.

Option 3: ☐ Not applicable.

This Part B is effective 01/01/2019. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2019.)*

NOTE: *If no option is selected, Option 2 will apply.*

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Part C. Six-Month Suspension of Elective Deferrals and Nondeductible Employee Contributions

1. Six-Month Suspension Applicability

Will an Employee's ability to make Elective Deferrals (and Nondeductible Employee Contributions, if applicable) be suspended for six months following the receipt of a hardship distribution *(select one and complete, if applicable)*?

Option 1: ☐ Yes. An Employee's Elective Deferrals (and Nondeductible Employee Contributions, if applicable) will be suspended following the receipt of a hardship distribution that is made from the following sources *(select all that apply)*:

- ☐ Elective Deferrals, or any other sources indicated in Plan Section 5.01(C)(2)(b), as applicable.
- ☐ Matching Contributions.
- ☐ Employer Profit Sharing Contributions.

Option 2: ☑ No.

Option 3: ☐ Not applicable. Hardship distributions are not allowed pursuant to Section Five, Part A, item 2 of the Adoption Agreement.

This Part C.1. is effective _____. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2019.)*

NOTE: *If no option is selected, Option 2 will apply. If Option 1 is selected and no contribution source is specified, Elective Deferrals (and Nondeductible Employee Contributions, if applicable) will be suspended following a hardship distribution before January 1, 2020, from any of the applicable contribution sources.*

2. Existing Six-Month Suspension Applicability

Will any existing six-month suspension of an Employee's Elective Deferrals (and Nondeductible Employee Contributions, if applicable) due to the receipt of a hardship distribution continue to apply *(select one and complete, if applicable)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

Option 3: ☐ Not applicable. Hardship distributions are not allowed pursuant to Section Five, Part A, item 2 of the Adoption Agreement.

This Part C.2. is effective 01/01/2019. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2019.)*

NOTE: *If no option is selected, Option 2 will apply.*

NOTE: *For a hardship distribution that is made on or after January 1, 2020, an Employee's Elective Deferrals (and Nondeductible Employee Contributions, if applicable) in all plans maintained by the Employer will not be suspended on account of the hardship distribution.*

PART TWO: SETTING EVERY COMMUNITY UP FOR RETIREMENT ENHANCEMENT ACT OF 2019

☐ **Not applicable. The Plan has already been amended for the Setting Every Community Up for Retirement Enhancement Act of 2019 (SECURE).**

NOTE: *If this option is selected, leave the remainder of this Part Two blank and proceed to Part Three.*

ELIGIBILITY

Part A. Long-Term, Part-Time Employee Eligibility

Will a Long-Term, Part-Time Employee be eligible to become a Participant in the Plan for purposes of receiving Employer Contributions other than Elective Deferrals that are made pursuant to Section Three of the Adoption Agreement *(select one and complete)*?

Option 1: ☐ Yes. A Long-Term, Part-Time Employee will also become eligible for purposes of receiving the following contributions *(select all that apply)*:

- ☐ Matching Contributions.
- ☐ Employer Profit Sharing Contributions.
- ☐ Qualified Nonelective Contributions.

Option 2: ☑ No.

This Part A is effective _____. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2021.)*

NOTE: *If no option is selected, Option 2 will apply.*

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CONTRIBUTIONS

Part B. QACA Elective Deferral Rates Standard Percentage

If the Adopting Employer has elected the QACA provisions of the Plan, has the Employer elected to increase the cap on QACA Elective Deferral rates to exceed ten percent following the Initial Period *(select one and complete, if applicable)*?

Option 1: ☑ Yes, the following percentage of each Eligible Employee's Compensation will be automatically withheld each payroll and contributed to the Plan as an Elective Deferral if the QACA provisions of the Plan will apply for the Plan Year and if an Eligible Employee does not timely return a salary reduction agreement *(complete the blanks, if applicable)*:

Initial Rate	3____% *(not less than three or more than ten)*
Rate Two	4____% *(not less than four or more than fifteen)*
Rate Three	5____% *(not less than five or more than fifteen)*
Rate Four	6____% *(not less than six or more than fifteen)*
Rate Five	_____% *(not less than six or more than fifteen)*
Rate Six	_____% *(not less than six or more than fifteen)*
Rate Seven	_____% *(not less than six or more than fifteen)*
Rate Eight	_____% *(not less than six or more than fifteen)*
Rate Nine	_____% *(not less than six or more than fifteen)*
Rate Ten	_____% *(not less than six or more than fifteen)*
Rate Eleven	_____% *(not less than six or more than fifteen)*
Rate Twelve	_____% *(not less than six or more than fifteen)*
Rate Thirteen	_____% *(not less than six or more than fifteen)*

Option 2: ☐ No.

Option 3: ☐ Not applicable. The Adopting Employer has not elected QACA provisions in Section Three, Part A, item 9 of the Adoption Agreement.

This Part B is effective 01/01/2020_____. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2020.)*

NOTE: *If no option is selected, Option 2 will apply. The QACA Elective Deferral rate must be at least three percent (not more than ten percent) of Compensation during the Initial Period and must be at least the minimum percentage described above for each subsequent period following the Initial Period until the Elective Deferral rate is at least six percent.*

Part C. Rollover Contribution of Lifetime Income Investment Distributions

If rollover contributions are allowed pursuant to Section Three, Part G, item 1 of the Adoption Agreement, will the Plan accept rollover contributions from an Eligible Retirement Plan that are attributable to a Lifetime Income Investment distribution *(select one and complete, if applicable)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

Option 3: ☐ Not applicable. Rollover contributions are not allowed pursuant to Section Three, Part G, item 1 of the Adoption Agreement.

This Part C is effective 01/01/2020_____. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2020.)*

NOTE: *If no option is selected, Option 1 will apply.*

Part D. Repayment of Qualified Birth or Adoption Distributions

If rollover contributions are allowed pursuant to Section Three, Part G, item 1 of the Adoption Agreement, will repayments of Qualified Birth or Adoption Distributions that were taken from another plan be allowed to be made to this Plan *(select one and complete, if applicable)*?

Option 1: ☑ Yes. The Plan will accept repayments of Qualified Birth or Adoption Distributions.

NOTE: *The distribution repayments will be permitted from the same sources that are elected for Direct Rollovers in Section Three, Part G, item 1(a) of the Adoption Agreement.*

Option 2: ☐ No.

Option 3: ☐ Not applicable. Rollover contributions are not allowed pursuant to Section Three, Part G, item 1 of the Adoption Agreement.

This Part D is effective 01/01/2020_____. *(Specify a date for this provision. The date may not be earlier than January 1, 2020.)*

NOTE: *If no option is selected, Option 2 will apply.*

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Part E. Safe Harbor CODA Contributions

1. Long-Term, Part-Time Employees

Will Safe Harbor CODA contributions be made on behalf of Long-Term, Part-Time Employees *(select one and complete, if applicable)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

Option 3: ☐ Not applicable. Safe Harbor CODA provisions do not apply to the Plan.

This Part E.1. is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2024.)*

NOTE: *If no option is selected, Option 2 will apply.*

2. Other Nondiscrimination Testing

If Long-Term, Part-Time Employees are excluded from receiving Safe Harbor CODA contributions, will Long-Term, Part-Time Employees be excluded from the ACP test (if applicable), nondiscrimination testing under Code section 401(a)(4), and coverage testing under Code section 410(b) for the Plan *(select one and complete, if applicable)*?

Option 1: ☑ Yes.

Option 2: ☐ No.

Option 3: ☐ Not applicable. Long-Term, Part-Time Employees are not excluded from receiving such contributions or Safe Harbor CODA provisions do not apply to the Plan.

This Part E.2. is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2024.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part F. Top-Heavy Contributions

For any Plan Year with respect to which the Plan is a Top-Heavy Plan, will the minimum contribution and allocation provisions of Plan Section 3.04(E) and the vesting schedules of Plan Section 4.01(B) apply to the Individual Accounts of Long-Term, Part-Time Employees *(select one and complete)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

This Part F is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2024.)*

NOTE: *If no option is selected, Option 2 will apply.*

DISTRIBUTIONS AND LOANS

Part G. Qualified Birth or Adoption Distributions

Will a Participant be entitled to request a Qualified Birth or Adoption Distribution pursuant to Plan Section 5.01(D)(6), Code section 72(t)(2)(H), and related guidance *(select one and complete)*?

Option 1: ☐ Yes. A Participant will be entitled to request a Qualified Birth or Adoption Distribution of their Individual Account attributable to the following contribution sources *(select all that apply)*:

- ☐ Elective Deferrals.
- ☐ Matching Contributions.
- ☐ Employer Profit Sharing Contributions.

Option 2: ☑ No.

This Part G is effective 01/01/2020. *(Specify a date for this provision. The date may not be earlier than January 1, 2020.)*

NOTE: *If no option is selected, Option 2 will apply.*

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Part H. Age 59½ Distributions

Will a Participant who has attained the age of 59½, but has not incurred a Termination of Employment, be entitled to request an in-service distribution of all or part of the Vested portion of their Individual Account attributable to transfers of money purchase pension contributions when they are eligible to receive an in-service distribution of any Employer Contributions under the Plan as of a date that is earlier than the first day of the Plan Year beginning on or after January 1, 2023 *(select one and complete)*?

Option 1: ☑ Yes.

Option 2: ☐ No.

This Part H is effective 01/01/2020. *(Specify a date for this provision. If Option 1 is selected, the date may not be earlier than first day of the Plan Year beginning on or after January 1, 2020, and may not be later than the last day of the 2022 Plan Year.)*

NOTE: *If no option is selected, Option 2 will apply.*

PART THREE: CORONAVIRUS AID, RELIEF, AND ECONOMIC SECURITY ACT OF 2020

☐ **Not applicable. The Plan has already been amended for the Coronavirus Aid, Relief, and Economic Security Act of 2020 (CARES).**

NOTE: *If this option is selected, leave the remainder of this Part Three blank and proceed to Part Four.*

CONTRIBUTIONS

Part A. Repayment of Coronavirus-Related Distributions

If rollover contributions are allowed pursuant to Section Three, Part G, item 1 of the Adoption Agreement, will repayments of Coronavirus-Related Distributions that were taken from another plan be allowed to be made to this Plan *(select one and complete, if applicable)*?

Option 1: ☑ Yes. The Plan will accept repayments of Coronavirus-Related Distributions.

NOTE: *The distribution repayments will be permitted from the same sources that are elected for Direct Rollovers in Section Three, Part G, item 1 of the Adoption Agreement.*

Option 2: ☐ No.

Option 3: ☐ Not applicable. Rollover contributions are not allowed pursuant to Section Three, Part G, item 1 of the Adoption Agreement.

This Part A is effective 01/01/2020. *(Specify a date for this provision. The date may not be earlier than January 1, 2020.)*

NOTE: *If no option is selected, Option 2 will apply.*

DISTRIBUTIONS AND LOANS

Part B. 2020 RMD Payment Election

Will Participants and Beneficiaries who would have otherwise been required to receive RMDs for 2020 but for the enactment of Code section 401(a)(9)(I) be permitted to choose whether to remove their 2020 RMD or Extended 2020 RMD from the Plan *(select one)*?

Option 1: ☑ Yes.

If a Participant or Beneficiary is allowed to remove their 2020 RMD or Extended RMD, but does not elect to remove such amount, the Employer will *(select one)*:

Suboption (a): ☑ retain such amount within the Plan.

Suboption (b): ☐ distribute such amount to the Participant or Beneficiary.

NOTE: *If no suboption is selected, Suboption (a) will apply.*

Option 2: ☐ No.

The Employer will *(select one)*:

Suboption (a): ☐ retain such amount within the Plan.

Suboption (b): ☐ distribute such amount to the Participant or Beneficiary.

NOTE: *If no suboption is selected, Suboption (a) will apply. If Suboption (a) applies, Code section 411(d)(6) may be violated if no other distributable event is available to a Participant or Beneficiary under the Plan. Generally, Code section 411(d)(6) prohibits the elimination of protected benefits and protected benefits include the timing of payout options. Refer to Code section 411(d)(6) and the corresponding Treasury Regulations for details pertaining to the elimination of an otherwise protected benefit.*

NOTE: *If no option is selected, Option 1 will apply.*

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Part C. Annuity Starting Dates

If a 2020 RMD or Extended 2020 RMD is not removed from the Plan, will there be a new Annuity Starting Date upon recommencement *(select one)*:

Option 1: ☐ Yes.

Option 2: ☑ No.

Option 3: ☐ Not Applicable. The Plan is not subject to the Qualified Joint and Survivor Annuity provisions.

NOTE: *If no option is selected, Option 2 will apply. A Plan subject to the Qualified Joint and Survivor Annuity provisions in Code sections 401(a)(11) and 417 (e.g., money purchase pension plans, target benefit pension plans) must follow the procedures described in IRS Notice 97-75, Q&A-8, regarding Annuity Starting Dates.*

Part D. Definition of Eligible Rollover Distribution

For purposes of the Direct Rollover distribution provisions of the Plan, the following will also be treated as Eligible Rollover Distributions *(select one)*:

Option 1: ☑ 2020 RMDs and Extended 2020 RMDs.

Option 2: ☐ 2020 RMDs.

Option 3: ☐ Neither 2020 RMDs nor Extended 2020 RMDs.

NOTE: *If no option is selected, Option 1 will apply.*

Part E. Coronavirus-Related Distributions

Will a Qualified Individual be entitled to request a Coronavirus-Related Distribution pursuant to Plan Section 5.01(D)(7), Section 2202 of the CARES Act, and related guidance *(select one and complete)*?

Option 1: ☑ Yes.

Option 2: ☐ No.

This Part E is effective 01/01/2020. *(Specify a date for this provision. The date may not be earlier than January 1, 2020.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part F. Coronavirus-Related Loans

Will a Participant who is a Qualified Individual be entitled to request a loan using the enhanced loan maximum amounts that are applicable to Qualified Individuals pursuant to Plan Section 5.16 *(select one and complete)*?

Option 1: ☑ Yes.

Option 2: ☐ No.

This Part F is effective 03/27/2020. *(Specify a date for this provision. The date may not be earlier than March 27, 2020.)*

NOTE: *If no option is selected, Option 1 will apply if the Plan allows for loans in Section Five, Part F and Option 2 will apply if the Plan does not otherwise allow for loans in Section Five, Part F.*

PART FOUR: SECURE 2.0 ACT OF 2022

☐ **Not applicable. The Plan has already been amended for the SECURE 2.0 Act of 2022 (SECURE 2.0).**

NOTE: *If this option is selected, leave the remainder of this Part Four blank and proceed to the Employer Signature section.*

ELIGIBILITY

Part A. Military Spouse Eligibility

Will an Employee who is a Military Spouse become eligible to participate in the Plan based upon the Military Spouse eligibility requirements of Plan Section 2.01 *(select one and complete)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

This Part A is effective _____. *(Specify a date for this provision. The date may not be earlier than January 1, 2023.)*

NOTE: *If no option is selected, Option 2 will apply.*

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Part B. Designated Roth Contributions

Will the Plan allow Participants to elect to designate Employer Contributions made to the Plan on their behalf as Designated Roth Contributions *(select one and complete)*?

Option 1: ☐ Yes. A Participant will be entitled to request Designated Roth Contributions to be made on their behalf for the following contribution types *(select all that apply)*:

- ☐ Matching Contributions (including Qualified Matching Contributions, if made to the Plan).
- ☐ Employer Profit Sharing Contributions.
- ☐ Safe Harbor/QACA Safe Harbor Contributions.
- ☐ Qualified Nonelective Contributions.

Option 2: ☑ No.

This Part B is effective 12/29/2022. *(Specify a date for this provision. The date may not be earlier than December 29, 2022.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part C. Increased Catch-up Contribution Limit

If Catch-up Contributions are permitted, will the increased Catch-up Contributions limit apply to Participants who attain ages 60, 61, 62, or 63 during the taxable year (select one)?

Option 1: ☑ Yes.

Option 2: ☐ No.

Option 3: ☐ Not applicable. Catch-up Contributions are not permitted.

This Part C is effective 01/01/2025. *(Specify a date for this provision. The date may not be earlier than the first day of the taxable year beginning on or after January 1, 2025.)*

NOTE: *If no option is selected, Option 1 will apply. However, Option 3 will apply if no option is selected, and Catch-up Contributions are not permitted under the Plan.*

Part D. Mandatory EACA

1. Authorization of Mandatory EACA

Will the mandatory EACA provisions of Plan Section 3.01(E)(7) apply *(select one)*?

Option 1: ☑ Yes.

Option 2: ☐ No. The Plan is exempt from the mandatory Elective Deferral enrollment provisions under Plan Section 3.01(E)(7)(b).

This Part D is effective 01/01/2025. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning on or after January 1, 2025.)*

NOTE: *If no option is selected, Option 1 will apply unless the Employer timely notified the Administrator that an exception applies under Plan Section 3.01(E)(7)(b). Complete the remainder of Part D only if Option 1 applies.*

2. Tax Character of Elective Deferrals

How will amounts withheld from Compensation and contributed to the Plan as mandatory automatic Elective Deferrals be designated for tax purposes *(select one)*?

Option 1: ☑ Pre-Tax Elective Deferrals.

Option 2: ☐ Roth Elective Deferrals.

NOTE: *If no option is selected, Option 1 will apply. Option 2 may only be selected if the Plan permits Roth Elective Deferrals under Section Three, Part A of the Adoption Agreement.*

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3. Expiration of Salary Reduction Agreement

a. Authorization of Expiration of Salary Reduction Agreement

Will a Participant's salary reduction agreement expire *(select one)*?

Option 1: ☐ Yes, for all Eligible Employees who are not Contributing Participants (e.g., are deferring zero-percent).

Option 2: ☐ Yes, for all Eligible Employees deferring less than the amount in item 5 below (including zero-percent).

Option 3: ☐ Yes, for all Eligible Employees.

Option 4: ☐ Yes, for the following Eligible Employees *(define classification)*:

_____

_____.

Option 5: ☑ No.

The Plan may provide that an Eligible Employee's affirmative salary reduction agreement election expires annually. If this Part D, item 3.a. is applicable and an Eligible Employee fails to complete a new salary reduction agreement subsequent to their prior salary reduction agreement expiring at the time indicated in Part D, item 3.b. below, the Eligible Employee will become subject to the default deferral percentages or amounts set forth in item 4 below. Each year, the Eligible Employee may complete a new salary reduction agreement or modify an existing salary reduction agreement to increase or decrease the amount of their Compensation deferred into the Plan. Unless otherwise elected in Section Three, Part A.7. of the Adoption Agreement, such modification may be made as of such times established by the Plan Administrator in a uniform and nondiscriminatory manner.

NOTE: *If no option is selected, Option 5 will apply. Complete the remainder of this item only if Option 1, 2, 3, or 4 is selected.*

b. Timing of Expiration of Salary Reduction Agreements

Salary reduction agreements will expire on the following date *(select one)*:

Option 1: ☐ First day of each Plan Year.

Option 2: ☐ First day of each calendar year.

Option 3: ☐ Other *(specify the date that the salary reduction agreements will expire)*:

_____

_____.

NOTE: *If no option is selected, Option 1 will apply.*

4. Current Employees

If the mandatory automatic enrollment provision is being added to the Plan, will the mandatory automatic enrollment for Elective Deferrals apply to Employees who have met the eligibility requirements on or after the Effective Date of this Part D, including those who met the eligibility requirements in the Adoption Agreement before the Effective Date of this Part D. *(select one)*?

Option 1: ☐ Yes, but only to those Employees who are not Contributing Participants (e.g., are deferring zero-percent).

Option 2: ☐ Yes, but only to those Employees deferring less than the amount in item 5 below (including zero-percent).

Option 3: ☐ Yes, for all current Employees who have met the eligibility requirements (including Contributing Participants and current Employees who are not Contributing Participants).

Option 4: ☑ Yes, for the following current Employees who have met the eligibility requirements *(specify the classification of Employees who will be subject to automatic enrollment)*:
but only those deferring less than the amount in item 5 below (excluding zero-percent).

_____

_____.

Option 5: ☐ No, automatic enrollment for Elective Deferrals will not apply to any current Employees who have met the eligibility requirements (including Contributing Participants and current Employees who are not Contributing Participants).

NOTE: *If no option is selected, Option 5 will apply.*

5. Initial Amount of Automatic Elective Deferral

___3___ percent *(not less than three or more than ten)* of each Employee's Compensation will be automatically withheld each payroll and contributed to the Plan as an Elective Deferral if they have met the eligibility requirements for Elective Deferrals.

NOTE: If no amount is provided, three percent will apply.

6. Authorization of Mandatory Automatic Elective Deferral Increase

Elective Deferrals will be increased one percent as of the first day of each Plan Year after an Employee's first year of participation under the automatic enrollment arrangement up to a maximum amount of ___15___ percent (at least ten but not more than fifteen).

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Part E. Starter 401(k) Provisions

Will the Starter 401(k) provisions in Section 3.01(L) of the Plan apply *(select one and complete)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

This Part E is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning after December 31, 2023.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part F. SIMPLE 401(k) Contribution Limits

If the SIMPLE 401(k) provisions apply to the Plan and there were more than 25 Employees who received at least $5,000 in Compensation from the Employer for an applicable preceding year, will the increased contribution limits set forth in Plan Section 3.02 apply to the Plan *(select one and complete, if applicable)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

Option 3: ☐ Not applicable. The Plan has not been established as a SIMPLE 401(k) Plan, or the Employer did not have more than 25 Employees who received at least $5,000 of Compensation from the Employer for an applicable preceding year.

This Part F is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than the first day of the taxable year beginning after December 31, 2023.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part G. Matching Contributions and Qualified Student Loan Payments

Will Matching Contributions be made to the Plan with regard to Qualified Student Loan Payments *(select one and complete)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

This Part G is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than the first day of the Plan Year beginning after December 31, 2023.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part H. Repayments of Certain Distributions

If rollover contributions are allowed pursuant to Section Three, Part G, item 1 of the Adoption Agreement, will repayments of domestic abuse distributions, emergency personal expense distributions, federally declared disaster distributions, and/or terminal illness distributions that were taken from another plan will be allowed to be made to this Plan *(select one and complete, if applicable)*?

Option 1: ☑ Yes. The Plan will accept repayments of the following types of distributions:

- ☑ Domestic abuse distributions as described in Plan Section 5.01(D)(9).
- ☑ Emergency personal expense distributions as described in Plan Section 5.01(D)(10).
- ☑ Federally declared disaster distributions as described in Plan Section 5.01(D)(4).
- ☑ Terminal illness distributions as described in Plan Section 5.01(D)(8).

NOTE: *If Option 1 is selected and no distributions are specified, repayments of all distribution types indicated will be permitted. The distribution repayments will be permitted from the same sources that are elected for Direct Rollovers in Section Three, Part G, item 1 of the Adoption Agreement.*

Option 2: ☐ No.

Option 3: ☐ Not applicable. Rollover contributions are not allowed pursuant to Section Three, Part G, item 1 of the Adoption Agreement.

This Part H is effective 01/01/2024 for domestic abuse distributions. *(Specify a date for this provision. The date may not be earlier than January 1, 2024.)*

This Part H is effective 01/01/2024 for emergency personal expense distributions. *(Specify a date for this provision. The date may not be earlier than January 1, 2024.)*

This Part H is effective 01/26/2021 for federally declared disaster distributions. *(Specify a date for this provision. The date may not be earlier than January 26, 2021.)*

This Part H is effective 12/29/2022 for terminal illness distributions. *(Specify a date for this provision. The date may not be earlier than December 29, 2022.)*

NOTE: *If no option is selected, Option 2 will apply.*

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Part I. Pension-Linked Emergency Savings Account (PLESA)

Will the Pension-Linked Emergency Savings Account (PLESA) provisions of Plan Section 3.19 apply *(select one and complete)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

This Part I is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than the beginning of the Plan Year after December 31, 2023.)*

NOTE: *If no option is selected, Option 2 will apply.*

DISTRIBUTIONS AND LOANS

Part J. Cashout Level for Terminated Participants

At what dollar level will the Plan cashout terminated Participants pursuant to Plan Section 4.01(C)(1) *(select one and complete, if applicable)*?

Option 1: ☑ $7,000.

Option 2: ☐ $1,000.

Option 3: ☐ $200.

Option 4: ☐ $_____ *(specify an amount less than $7,000)*.

Option 5: ☐ Not applicable. The cashout distribution provisions in Plan Section 4.01(C)(1) will not apply.

This Part J is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than January 1, 2024.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part K. Domestic Abuse Distribution

Will the Plan allow Participants to obtain a domestic abuse distribution pursuant to Plan Section 5.01(D)(9) *(select one and complete)*?

Option 1: ☑ Yes.

Option 2: ☐ No.

This Part K is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than January 1, 2024.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part L. Emergency Personal Expense Distribution

Will the Plan allow Participants to obtain an emergency personal expense distribution pursuant to Plan Section 5.01(D)(10) *(select one and complete)*?

Option 1: ☑ Yes.

Option 2: ☐ No.

This Part L is effective 01/01/2024. *(Specify a date for this provision. The date may not be earlier than January 1, 2024.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part M. Federally Declared Disaster Distribution

Will the Plan allow Participants to obtain a federally declared disaster distribution pursuant to Plan Section 5.01(D)(4) *(select one and complete)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

This Part M is effective 01/26/2021. *(Specify a date for this provision. If no date is selected, January 26, 2021, will apply. The date may not be earlier than January 26, 2021.)*

NOTE: *If no option is selected, Option 2 will apply.*

Part N. Terminal Illness Distribution

Will the Plan allow Participants to obtain a terminal illness distribution pursuant to Plan Section 5.01(D)(8) *(select one and complete)*?

Option 1: ☐ Yes.

Option 2: ☑ No.

This Part N is effective 12/29/2022. *(Specify a date for this provision. If no date is selected, December 29, 2022, will apply. The date may not be earlier than December 29, 2022.)*

NOTE: *If no option is selected, Option 2 will apply.*

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Part O. Qualified Federally Declared Disaster Loans

Will a Participant who is otherwise entitled to request a loan from the Plan be entitled to request a loan using the enhanced loan maximum amounts that are applicable to loans for federally declared disasters in Plan Section 5.16 *(select one and complete)*?

Option 1: ☐ Yes.

Option 2: ☑ No. The Plan either does not provide for loans or, if loans are permitted from the Plan, a Participant who is otherwise entitled to request a loan from the Plan will not be entitled to request a loan using the enhanced loan maximum amounts that are applicable to loans for federally declared disasters in Plan Section 5.16.

This Part O is effective 01/26/2021. *(Specify a date for this provision. The date may not be earlier than January 26, 2021.)*

NOTE: *If no option is selected, Option 1 will apply if the Plan allows loans in Section Five, Part F, and Option 2 will apply if the Plan does not otherwise allow for loans in Section Five, Part F.*

EMPLOYER SIGNATURE

Signature of Employer:

1. **I acknowledge that I have relied upon my own advisers regarding the completion of this Adoption Agreement Termination Amendment and the legal and tax implications of amending this Plan;**
2. **I understand that my failure to properly complete this Adoption Agreement Termination Amendment may result in disqualification of the Plan; and**
3. **I have received a copy of this Adoption Agreement Termination Amendment and the corresponding Basic Plan Document Termination Amendment which are hereby adopted for the Plan.**

Signature of Adopting Employer Benjamin Darby Date Signed 3/20/2026

Type Name Benjamin Darby Title President

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Ascensus Basic Plan Document
Termination Amendment

This amendment of the Plan (hereinafter referred to as the "Amendment") is comprised of this Basic Plan Document Termination Amendment and the corresponding Adoption Agreement Termination Amendment, if applicable. The Amendment is intended to provide good faith compliance with the requirement that a terminating plan must accurately reflect the provisions under which it is operating as of the termination date. This Amendment supersedes the existing provisions of the Plan to the extent that those provisions are inconsistent with the provisions of the Amendment. The Amendment will not cause the Plan to become an individually designed plan.

PART ONE: BIPARTISAN BUDGET ACT OF 2018

The following is intended to provide good faith compliance with certain provisions of the Bipartisan Budget Act of 2018 (BBA) and related guidance. Except as otherwise provided in the Adoption Agreement Termination Amendment or indicated below, these provisions are effective on the first day of the Plan Year beginning on or after January 1, 2019.

SECTION FIVE: DISTRIBUTIONS AND LOANS TO PARTICIPANTS

The Basic Plan Document section entitled Distributions is modified by replacing Section 5.01(A)(2)(c) with the following:

c. existence of a hardship incurred by the Participant as described in Plan Section 5.01(C)(2)(b), if elected in the Adoption Agreement. Notwithstanding the preceding, unless elected otherwise in the Adoption Agreement Termination Amendment, distribution of Qualified Nonelective Contributions, Qualified Matching Contributions, Basic Matching Contributions, Enhanced Matching Contributions, Safe Harbor Nonelective Contributions, QACA Basic Matching Contributions, QACA Enhanced Matching Contributions, and QACA Safe Harbor Nonelective Contributions, including any earnings credited to an Employee's account, will be permitted upon the existence of a hardship as described in Plan Section 5.01(C)(2)(b).

The Basic Plan Document section entitled Distributions is modified by replacing Section 5.01(C)(2)(a) and (b) with the following:

a. *Hardship Withdrawals of Matching Contributions and Employer Profit Sharing Contributions* – Unless otherwise elected in the Adoption Agreement, if this is a profit sharing plan, then notwithstanding Plan Section 5.01(C)(1), an Employee may elect to receive a hardship distribution of all or part of the Vested portion of their Individual Account attributable to Employer Contributions other than those described in Plan Section 5.01(A)(2), subject to the requirements of Plan Section 5.10.

   For purposes of this Plan Section 5.01(C)(2)(a), hardship is defined as an immediate and heavy financial need of the Employee where such Employee lacks other available resources. Unless otherwise elected in the Adoption Agreement, financial needs considered immediate and heavy include, but are not limited to, 1) expenses incurred or necessary for medical care, described in Code section 213(d), of the Employee, the Employee's Spouse, dependents, or, if elected, the Employee's Primary Beneficiary, 2) the purchase (excluding mortgage payments) of a principal residence for the Employee, 3) payment of tuition and related educational fees for the next 12 months of post-secondary education for the Employee, the Employee's Spouse, children, dependents, or, if elected, the Employee's Primary Beneficiary, 4) payment to prevent the eviction of the Employee from, or a foreclosure on the mortgage of, the Employee's principal residence, 5) funeral or burial expenses for the Employee's deceased parent, Spouse, child, dependent, or, if elected, the Employee's Primary Beneficiary, 6) payment to repair damage to the Employee's principal residence that would qualify for a casualty loss deduction under Code section 165 (determined without regard to Code section 165(h)(5) and whether the loss exceeds ten percent of adjusted gross income), and 7) effective for distributions on or after January 1, 2018, expenses and losses (including loss of income) incurred by the Employee on account of a disaster declared by the Federal Emergency Management Agency (FEMA), provided that the Employee's principal residence or principal place of employment at the time of the disaster was located in an area designated by FEMA for individual assistance with respect to the disaster and the Employee did not request a distribution from the Plan for such expenses and losses pursuant to Plan Section 5.01(D)(4).

   A distribution will be considered necessary to satisfy an immediate and heavy financial need of the Employee only if

   i. the Employee has obtained all currently available distributions (including distributions of ESOP dividends under Code section 404(k)), other than hardship distributions, under the Plan and all other qualified and nonqualified deferred compensation plans of the Employer and, if elected in the Adoption Agreement Termination Amendment, the Employee has obtained all nontaxable loans under all plans maintained by the Employer and/or satisfies any additional conditions specified in the Adoption Agreement Termination Amendment;

   ii. the distribution is not in excess of the amount of an immediate and heavy financial need (including amounts necessary to pay any federal, state, or local income taxes or penalties reasonably anticipated to result from the distribution); and

   iii. effective for distributions on or after January 1, 2020, the Employee provided the Plan Administrator with a representation, in writing (including by using an electronic medium as defined in Treasury Regulation section 1.401(a)-21(e)(3)), or in such other form that may be permitted under rules promulgated by the IRS, that they have insufficient cash or other liquid assets reasonably available to satisfy their financial need.

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b. *Hardship Withdrawals of Elective Deferrals, QNECs, QMACs, and Safe Harbor Contributions* – Unless otherwise elected in the Adoption Agreement Termination Amendment, distribution of Elective Deferrals, Qualified Nonelective Contributions, Qualified Matching Contributions, Basic Matching Contributions, Enhanced Matching Contributions, Safe Harbor Nonelective Contributions, QACA Basic Matching Contributions, QACA Enhanced Matching Contributions, and QACA Safe Harbor Nonelective Contributions, including any earnings credited to an Employee's account attributable to such contributions, may be made to an Employee in the event of hardship. For the purposes of this Plan Section 5.01(C)(2)(b), hardship is defined as an immediate and heavy financial need of the Employee where the distribution is needed to satisfy the immediate and heavy financial need of such Employee. Hardship distributions are subject to the spousal consent requirements contained in Code sections 401(a)(11) and 417, if applicable.

For purposes of determining whether an Employee has a hardship, rules similar to those described in Plan Section 5.01(C)(2)(a) will apply except that only the financial needs listed above will be considered. Unless otherwise elected in the Adoption Agreement Termination Amendment, any existing suspension of an Employee's Elective Deferrals (and Nondeductible Employee Contributions, if applicable) due to the receipt of a hardship distribution from the Plan will cease to continue as of the first day of the Plan Year beginning on or after January 1, 2019. In addition, unless otherwise elected in the Adoption Agreement Termination Amendment, an Employee's Elective Deferrals (and Nondeductible Employee Contributions, if applicable) will not be suspended for any period of time due to the receipt of a hardship distribution that is made during the Plan Year beginning on or after January 1, 2019. For distributions that are made on or after January 1, 2020, an Employee's Elective Deferrals (and Nondeductible Employee Contributions, if applicable) will not be suspended for any period of time due to the receipt of a hardship distribution. For hardship distributions before 2002, a distribution will be considered as necessary to satisfy an immediate and heavy financial need of the Employee only if all plans maintained by the Employer provide that the Employee may not make Elective Deferrals for the Employee's taxable year immediately following the taxable year of the hardship distribution in excess of the applicable limit under Code section 402(g) for such taxable year less the amount of such Employee's Elective Deferrals for the taxable year of the hardship distribution.

PART TWO: SETTING EVERY COMMUNITY UP FOR RETIREMENT ENHANCEMENT ACT OF 2019

The following is intended to provide good faith compliance with certain provisions of the Further Consolidated Appropriations Act, 2020, including the Setting Every Community Up for Retirement Enhancement Act of 2019 (SECURE) and the Bipartisan American Miners Act of 2019, and related guidance. Except as otherwise provided in the Adoption Agreement Termination Amendment or indicated below, these provisions are effective on the first day of the Plan Year beginning on or after January 1, 2020.

DEFINITIONS

APPLICABLE MULTI-BENEFICIARY TRUST

Applicable Multi-Beneficiary Trust *is added to the Plan as a new defined term with the following definition:*

Means a trust 1) that has more than one Beneficiary, 2) in which all of the Beneficiaries are treated as Designated Beneficiaries for purposes of determining the distribution period pursuant to Code section 401(a)(9), and 3) in which at least one of the Beneficiaries is an Eligible Designated Beneficiary described in Code section 401(a)(9)(E)(ii)(III) or (IV).

BREAK IN VESTING SERVICE

The Plan's definition of* Break in Vesting Service *is modified by adding the following to the end:

Means a Plan Year (or other vesting computation period described in the definition of Year of Vesting Service) during which an Employee fails to complete more than 500 Hours of Service (or such lesser number of Hours of Service specified in the Adoption Agreement for this purpose), or such period specified in the Elapsed Time definition, if applicable. Except as otherwise indicated in rules promulgated by the IRS, in the case of an Employee who is a Long-Term, Part-Time Employee, for Plan Years beginning on or after January 1, 2021, "at least 500 Hours of Service" shall be substituted for "more than 500 Hours of Service."

COMPENSATION

The Plan's definition of* Compensation*, Section B, is modified by adding the following at the end of paragraph three:

In addition, for Plan Years beginning on or after January 1, 2016, Compensation for a Participant shall, as required under Code section 415(c)(8) and related guidance, be increased by the amount of Difficulty of Care Payments that are excluded from gross income by such Participant under Code section 131 for a taxable year.

DIFFICULTY OF CARE PAYMENTS

Difficulty of Care Payments *is added to the Plan as a new defined term with the following definition:*

Means the amount of qualified foster care payments that an Employee receives from the Adopting Employer that are excluded from gross income by such Participant under Code section 131 for a taxable year. Participant contributions allocable to Difficulty of Care Payments shall be treated as Nondeductible Employee Contributions for purposes of the Code and this Plan, except as otherwise provided herein or by law or regulation.

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EFFECTIVE DATE

The Plan's definition of* Effective Date *is modified by adding the following as a new paragraph to the end:

For purposes of an initial adoption of the Plan by the Adopting Employer that occurs for taxable years beginning on or after January 1, 2020, if the Plan is adopted after the close of the initial Plan Year of the Plan, but prior to the Adopting Employer's deadline for filing a tax return (including any applicable filing extensions) for the taxable year that contains such initial Plan Year end, the Plan will be treated as if the Plan was adopted as of the last day of the initial Plan Year.

ELIGIBLE ADOPTEE

Eligible Adoptee *is added to the Plan as a new defined term with the following definition:*

Means any individual (other than a child of the Employee's Spouse) who has not attained age 18 or is physically or mentally incapable of self-support.

ELIGIBLE DESIGNATED BENEFICIARY

Eligible Designated Beneficiary *is added to the Plan as a new defined term with the following definition:*

Means with respect to any Participant, any Designated Beneficiary who is 1) the surviving Spouse of the Participant, 2) a child of the Participant who has not reached the age of majority, 3) disabled (within the meaning of Code section 72(m)(7) and related guidance), 4) a chronically ill individual (within the meaning of Code section 7702B(c)(2), except that the requirements of subparagraph (A)(i) thereof shall only be treated as met if there is a certification that, as of such date, the period of inability must be an indefinite one which is reasonably expected to be lengthy in nature), 5) an individual not described in the preceding who is not more than 10 years younger than the Participant, or 6) any other individual as determined by the Secretary of the Treasury.

The determination of whether a Designated Beneficiary is an Eligible Designated Beneficiary shall be determined as of the date of death of the Participant in accordance with Code section 401(a)(9) and related guidance.

FORMER LONG-TERM, PART-TIME EMPLOYEE

Former Long-Term, Part-Time Employee *is added to the Plan as a new defined term with the following definition:*

Means any Long-Term, Part-Time Employee who has completed 1,000 Hours of Service during a 12-month period or has transferred to an ineligible class as described in Section 2.03 of the Plan. On the first day of the Plan Year following such completion of service or ineligibility, the Former Long-Term, Part-Time Employee will no longer be treated as a Long-Term, Part-Time Employee for any purpose other than the determination of Years of Vesting Service.

LIFETIME INCOME FEATURE

Lifetime Income Feature *is added to the Plan as a new defined term with the following definition:*

Means 1) a feature which guarantees a minimum level of income annually (or more frequently) for at least the remainder of the life of the Participant or the joint lives of the Participant and the Participant's Designated Beneficiary, or 2) an annuity payable on behalf of the Participant under which payments are made in substantially equal periodic payments (not less frequently than annually) over the life of the Participant or the joint lives of the Participant and the Participant's Designated Beneficiary.

LIFETIME INCOME INVESTMENT

Lifetime Income Investment *is added to the Plan as a new defined term with the following definition:*

Means an investment option which is designed to provide a Participant with election rights 1) which are not uniformly available with respect to other investment options under the Plan, and 2) which are available to a Lifetime Income Feature through a contract or other arrangement offered under the Plan (or under another Eligible Retirement Plan, if paid by means of a Direct Rollover described in Code section 401(a)(31)(A) to such other eligible retirement plan).

LONG-TERM, PART-TIME EMPLOYEE

Long-Term, Part-Time Employee *is added to the Plan as a new defined term with the following definition:*

Means an Employee who is eligible to become a Participant in the Plan for purposes of making Elective Deferrals solely by reason of satisfying the eligibility requirements indicated in item 2) of the second paragraph of Plan Section 2.01. Notwithstanding the preceding, a Long-Term, Part-Time Employee will not include Employees described in Code section 410(b)(3).

MAXIMUM PERMISSIBLE AMOUNT

The Plan's definition of* Maximum Permissible Amount *is modified by adding the following to the end:

For Limitation Years beginning on or after January 1, 2016, the compensation limitation referred to in (b) will be increased by the amount of Difficulty of Care Payments for a taxable year that are excluded from gross income by such Participant under Code section 131.

QUALIFIED BIRTH OR ADOPTION DISTRIBUTION

Qualified Birth or Adoption Distribution *is added to the Plan as a new defined term with the following definition:*

Means any distribution from the Plan to an Employee if made during the one-year period beginning on the date on which a child of the Employee is born or on which the legal adoption by the Employee of an Eligible Adoptee is finalized. Notwithstanding the preceding, for purposes of a repayment of a Qualified Birth or Adoption Distribution to the Plan in accordance with Plan Section 3.07, a Qualified Birth or Adoption Distribution may be taken from a source other than the Plan.

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QUALIFIED PLAN DISTRIBUTION ANNUITY CONTRACT

Qualified Plan Distribution Annuity Contract ***is added to the Plan as a new defined term with the following definition:***

Means an annuity contract purchased for a Participant and distributed to the Participant by the Plan.

REQUIRED BEGINNING DATE

The Plan's definition of **Required Beginning Date** ***is modified by replacing the defined term with the following:***

Means, unless otherwise elected in the Adoption Agreement, April 1 of the calendar year following the calendar year in which the Participant attains age 70½ or retires, whichever is later, except that benefit distributions to a five-percent owner must commence by the April 1 of the calendar year following the calendar year in which the Participant attains age 70½. Notwithstanding the preceding, if required under transition rules provided under Treasury Regulation section 1.401(a)(9), the Required Beginning Date means April 1 of the calendar year following the calendar year in which the Participant attains age 70½. However, if an amendment was previously made to the Plan pursuant to Treasury Regulation section 1.411(d)-4, Q&A-10(b), any Participant (other than a five-percent owner) attaining age 70½ after 1995 may elect by the April 1 of the calendar year following the year in which the Participant attained age 70½ (or by December 31, 1997, in the case of a Participant attaining age 70½ in 1996) to defer distributions until the calendar year following the calendar year in which the Participant retires. An election to defer distributions will be deemed made by a Participant who does not request a minimum distribution by April 1 of the year following the year in which the Participant attains age 70½. Notwithstanding the preceding, for distributions required to be made on or after January 1, 2020, with respect to individuals who attain age 70½ on or after such date, any reference in the Basic Plan Document or the Adoption Agreement to "70½" as it relates to the Required Beginning Date shall be effectively changed to "72."

A Participant is treated as a five-percent owner for purposes of this section if such Participant is a five-percent owner as defined in Code section 416 at any time during the Plan Year ending with or within the calendar year in which such owner attains age 70½. Once distributions have begun to a five-percent owner under this section, they must continue to be distributed, even if the Participant ceases to be a five-percent owner in a subsequent year.

Notwithstanding the preceding, if the Employer elected in the Adoption Agreement to offer Deemed IRAs, the definition of required beginning date and the distribution provisions of Plan Section 3.15 will apply to such Deemed IRAs.

YEAR OF VESTING SERVICE

The Plan's definition of **Year of Vesting Service** ***is modified by replacing the first paragraph with the following:***

Means a Plan Year during which an Employee completes at least 1,000 Hours of Service (or such lesser number of Hours of Service specified in the Adoption Agreement for this purpose), or such period specified in the Period of Service definition, if applicable. Except as otherwise indicated in rules promulgated by the IRS, in the case of an Employee who is a Long-Term, Part-Time Employee or a Former Long-Term, Part-Time Employee, for Plan Years beginning on or after January 1, 2021, "500 Hours of Service" shall be substituted for "1,000 Hours of Service." Notwithstanding the preceding sentence, if the Adopting Employer so indicates in the Adoption Agreement, vesting will be computed by reference to the 12-consecutive month period beginning with the Employee's Employment Commencement Date and each successive 12-month period commencing on the anniversaries thereof, or some other 12-consecutive month period.

SECTION TWO: ELIGIBILITY

The Basic Plan Document section entitled **Eligibility to Participate** ***is modified by adding the following after the first paragraph in Section 2.01:***

Except as otherwise indicated in rules promulgated by the IRS, for Plan Years beginning on or after January 1, 2021, pursuant to Code section 401(k)(2)(D), eligibility service requirements must be coordinated such that the Plan does not require, as a condition of participation for purposes of making Elective Deferrals, that an Employee complete eligibility service requirements with the Employer maintaining the Plan extending beyond the close of the earlier of 1) the period permitted under Code section 410(a)(1)(A)(ii), or 2) the first period of three consecutive 12-month periods during each of which the Employee, other than a union employee or non-resident alien described in items (A) and (B) below or an Employee who belongs to a class of Employees excluded from participation as indicated in the Adoption Agreement and as permitted by the Treasury Regulations and related guidance, completes at least 500 Hours of Service. For purposes of determining an Employee's eligibility under item 2), 12-month periods beginning before January 1, 2021, will not be taken into account and such requirement will not apply unless the Employee has attained the age of 21 by the close of the last 12-month period. If elected by the Adopting Employer in the Adoption Agreement Termination Amendment and except as otherwise indicated in rules promulgated by the IRS, for Plan Years beginning on or after January 1, 2021, the eligibility requirements indicated in item 2) above will also apply for purposes of determining an Employee's eligibility to become a Participant in the Plan for purposes of receiving Employer Contributions (other than Elective Deferrals).

SECTION THREE: CONTRIBUTIONS

The Basic Plan Document section entitled **Elective Deferrals** ***is modified by replacing Section 3.01(F)(5) with the following:***

5. QACA Notice Requirement – If the Adopting Employer has elected the QACA Basic Matching Contribution or QACA Enhanced Matching Contribution option in the Adoption Agreement, a comprehensive notice of the Employee's rights and obligations under the Plan, written in a manner calculated to be understood by the average Eligible Employee which meets the content requirements of

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Code section 401(k)(13), its associated regulations, and other guidance, will be provided to affected Participants within a reasonable period of time before the start of the first Plan Year in which the QACA provisions become effective and before each subsequent Plan Year. In addition to the requirements found in Treasury Regulation section 1.401(k)-3(d), the notice will accurately describe 1) the amount of the default Elective Deferrals that will be made on the Employee's behalf, 2) the Employee's right to elect to have a different Elective Deferral withheld including the right to not make Elective Deferrals at all, and 3) how Elective Deferrals will be invested if the Employee does not provide investment instructions. A period of 30 to 90 days before the beginning of the Plan Year is deemed to be a reasonable period. Whether a different period is reasonable will be determined based on all of the relevant facts and circumstances. If a Plan has an eligibility period of less than 30 days (e.g., immediate eligibility), the Plan can provide notice to Participants when they become eligible. If notice cannot be provided on or before the Employee's eligibility date, it will be deemed timely if it is provided as soon as practicable after that date and before the pay date for the payroll period within which the Employee becomes eligible. In such case, the Employee must be allowed to defer from Compensation earned beginning on the date the Employee enters the Plan.

Notwithstanding the preceding, the Employer may change these notice requirements pursuant to rules promulgated by the IRS or DOL.

The Basic Plan Document section entitled* Elective Deferrals *is modified by replacing Section 3.01(F)(6) with the following:

6. QACA Election Periods – If the Adopting Employer has elected the QACA Basic Matching Contribution or QACA Enhanced Matching Contribution option in the Adoption Agreement, each Eligible Employee may make or modify a deferral election during a reasonable period of time immediately following receipt of the notice described above in addition to any other election periods provided under the Plan. Notwithstanding the preceding, the Employer may change the election periods described above pursuant to rules promulgated by the IRS or DOL.

The Basic Plan Document section entitled* Safe Harbor CODA *is modified by replacing Section 3.03(C) with the following:

C. Notice Requirement – An Adopting Employer who has elected the Safe Harbor CODA provisions, other than the Safe Harbor Nonelective Contribution option in the Adoption Agreement, will provide each Eligible Employee a comprehensive notice of the Employee's rights and obligations under the Plan, written in a manner calculated to be understood by the average Eligible Employee. The notice shall be provided at least 30 days, but not more than 90 days or any other reasonable period, before the beginning of the Plan Year (or such other times if permitted by the IRS). If an Employee becomes eligible after the 90th day before the beginning of the Plan Year and does not receive the notice for that reason, the notice must be provided no more than 90 days before the Employee becomes eligible but not later than the date the Employee becomes eligible. Notwithstanding the preceding, the Employer may change this notice requirement pursuant to the rules promulgated by the IRS.

The Basic Plan Document section entitled* Safe Harbor CODA *is modified by replacing Section 3.03(D) with the following:

D. Election Periods – If the Adopting Employer has elected the Basic Matching Contributions, Enhanced Matching Contributions or ACP Test Safe Harbor Matching Contributions option in the Adoption Agreement, each Eligible Employee may make or modify a deferral election during the 30-day period immediately following receipt of the notice described in Plan Section 3.03(C) above in addition to any other election periods provided under the Plan. Notwithstanding the preceding, the Employer may change the election periods described above pursuant to rules promulgated by the IRS.

The Basic Plan Document section entitled* Safe Harbor CODA *is modified by adding the following as Section 3.03(E):

E. Retroactive Application of Safe Harbor Nonelective Contributions – Notwithstanding anything in this plan to the contrary, the Adopting Employer may amend the Plan after the beginning of the Plan Year to provide that this Plan Section 3.03 will apply for such Plan Year. If the amendment is adopted at any time before the 30th day before the close of the Plan Year, the Employer will make Safe Harbor Nonelective Contributions to the Plan for such Plan Year in an amount equal to at least three percent of each Eligible Employee's Compensation, as specified in the Adoption Agreement Amendment. However, if the amendment is adopted at any time on or after the 30th day before the close of the Plan Year but before the last day for distributing excess contributions for the Plan Year (under Code section 401(k)(8)(A)), the Employer will make a Safe Harbor Nonelective Contribution to the Plan for such Plan Year in an amount equal to at least four percent of each Eligible Employee's Compensation, as specified in the Adoption Agreement Amendment.

Notwithstanding the preceding, this Plan Section 3.03(E) shall not apply to any Plan Year if the Plan provided, at any time during the Plan Year, that the Basic Matching Contribution, Enhanced Matching Contribution, QACA Basic Matching Contribution, or QACA Enhanced Matching Contribution requirements applied to the Plan Year.

The Basic Plan Document section entitled* Rollover Contributions *is modified by adding the following to the end of Section 3.07:

A Participant who receives a Qualified Birth or Adoption Distribution from the Plan may, in accordance with the Plan's existing rollover contribution elections and pursuant to rules promulgated by the IRS, make one or more repayments to the Plan in an aggregate amount not to exceed the amount of such distribution. In addition, if elected in the Adoption Agreement Termination Amendment, a Participant who receives a Qualified Birth or Adoption Distribution that is taken from a source other than the Plan may, in accordance with the Adopting Employer's elections in the Adoption Agreement Termination Amendment and pursuant to rules promulgated by the IRS, make one or more repayments to the Plan in an aggregate amount not to exceed the amount of such distribution. For purposes of any repayments to the Plan under this Plan Section 3.07, the Participant will be treated as having received the Qualified Birth or

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Adoption Distribution in an eligible rollover distribution (as defined in Code section 402(c)(4)) and as having contributed the amount to the Eligible Retirement Plan within 60 days of the distribution.

Unless otherwise elected in the Adoption Agreement, the Plan will accept a rollover contribution of a Lifetime Income Investment Distribution from an Eligible Retirement Plan in accordance with the Plan's existing rollover provisions.

The Basic Plan Document section entitled* Limitation on Allocations *is modified by adding the following, as Section 3.12(E):
Except as otherwise provided herein or by law, Participant contributions allocable to Difficulty of Care Payments shall be treated as Nondeductible Employee Contributions for purposes of the Code and this Plan. Such contributions shall not, however, cause the Plan to be treated as failing to meet the requirements of any provision described in Code chapter 1, Normal Taxes and Surtaxes, by reason of any contribution that is based on Difficulty of Care Payments.

The Basic Plan Document section entitled* Deemed IRAs *is modified by adding the following as Section 3.15(A)(8):
With respect to IRA Owners who die on or after January 1, 2020, the entire remaining interest will generally be distributed by December 31 of the year containing the tenth anniversary of the IRA Owner's death unless the designated beneficiary is an eligible designated beneficiary (as defined in Code section 401(a)(9)(E) and regulations promulgated under Code Section 401(a)(9)) or there is no designated beneficiary for purposes of determining a distribution period. This requirement applies to beneficiaries regardless of whether the IRA Owner dies before, on, or after their required beginning date.

If the designated beneficiary is an eligible designated beneficiary, the entire remaining interest may be distributed (in accordance with Treasury Regulations) over the remaining Life Expectancy of the eligible designated beneficiary (or over a period not extending beyond the Life Expectancy of such beneficiary). Certain trust beneficiaries (e.g., an applicable multi-beneficiary trust which meets the requirements of Code section 401(a)(9)(H)(iv) and (v)) may distribute the entire interest over the remaining Life Expectancy of the trust beneficiary.

Generally, Life Expectancy distributions to an eligible designated beneficiary must commence by December 31 of the year following the year of the IRA Owner's death. However, if the IRA Owner's surviving spouse is the eligible designated beneficiary, distributions need not commence until December 31 of the year the IRA Owner would have attained age 72, if later. If the IRA Owner's eligible designated beneficiary is the IRA Owner's minor child, Life Expectancy payments must begin by December 31 of the year following the year of the IRA Owner's death and continue until the child reaches the age of majority. Except as otherwise permitted by the IRS under regulation or other guidance, the beneficiary will have 10 years to deplete the account once the age of majority is reached.

If a beneficiary other than a person (including certain trusts) is named, the IRA Owner will be treated as having no designated beneficiary of the IRA for purposes of determining the distribution period. If the IRA Owner dies before their required beginning date and there is no designated beneficiary of the IRA, the entire IRA must be distributed by December 31 of the year containing the fifth anniversary of the IRA Owner's death. If the IRA Owner dies on or after their required beginning date and there is no designated beneficiary of the IRA, distributions will commence using the IRA Owner's single Life Expectancy, reduced by one in each subsequent year.

The provisions of this Plan Section 3.15(A)(8) will not apply to a qualified annuity (as defined in Section 401 of the SECURE Act and related guidance) that is a binding annuity contract in effect as of December 20, 2019 and at all times thereafter.

The Basic Plan Document section entitled* Deemed IRAs *is modified by replacing the first sentence in Section 3.15(B)(1)(c)(ii)(b) with the following:
If the Roth IRA Owner's sole designated beneficiary is their surviving Spouse, the entire interest will be distributed, starting by the end of the calendar year following the calendar year of the Roth IRA Owner's death (or by the end of the calendar year in which the Roth IRA Owner would have attained age 72 (age 70½ if the Roth IRA Owner would have attained age 70½ before 2020), if later), over such Spouse's life, or, if elected, in accordance with Plan Section 3.15(B)(1)(c)(ii)(c).

The Basic Plan Document section entitled* Deemed IRAs *is modified by replacing Section 3.15(B)(2)(b)(ii) with the following:

ii. The entire value of the account of the Traditional IRA Owner for whose benefit the account is maintained will begin to be distributed no later than the first day of April following the calendar year in which such Traditional IRA Owner attains age 72 (age 70½ if the Traditional IRA Owner attains age 70½ before 2020) (the required beginning date) over the life of such Traditional IRA Owner or the lives of such Traditional IRA Owner and their designated beneficiary.

The Basic Plan Document section entitled* Deemed IRAs *is modified by replacing the first sentence in Section 3.15(B)(2)(b)(iii) with the following:
The amount to be distributed each year, beginning with the calendar year in which the Traditional IRA Owner attains age 72 (age 70½ if the Traditional IRA Owner attains age 70½ before 2020) and continuing through the year of death, will not be less than the quotient obtained by dividing the value of the Traditional IRA (as modified by Plan Section 3.15(B)(2)(c)(iii)) as of the end of the preceding year by the distribution period in the Uniform Lifetime Table in Treasury Regulation section 1.401(a)(9)-9(c), using the Traditional IRA Owner's age as of their birthday in the year.

The Basic Plan Document section entitled* Deemed IRAs *is modified by replacing Section 3.15(B)(2)(b)(iv) with the following:
The required minimum distribution for the year the Traditional IRA Owner attains age 72 (age 70½ if the Traditional IRA Owner attains age 70½ before 2020) can be made as late as April 1 of the following year. The required minimum distribution for any other year must be made by the end of such year.

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The Basic Plan Document section entitled* Deemed IRAs *is modified by replacing the first sentence in Section 3.15(B)(2)(c)(ii)(b) with the following:
If the Traditional IRA Owner's sole designated beneficiary is the Traditional IRA Owner's surviving Spouse, the entire interest will be distributed, starting by the end of the calendar year following the calendar year of the Traditional IRA Owner's death (or by the end of the calendar year in which the Traditional IRA Owner would have attained age 72 (age 70½ if the Traditional IRA Owner would have attained age 70½ before 2020), if later), over such Spouse's life, or, if elected, in accordance with Plan Section 3.15(B)(2)(c)(ii)(c).

The Basic Plan Document section entitled* Contributions *is modified by adding the following as Section 3.17:
Special Rules for Participation Requirements for Long-Term, Part-Time Employees

A. Nondiscrimination Rules – Notwithstanding Code section 401(a)(4) and unless otherwise elected in the Adoption Agreement Termination Amendment, the Employer will not be required to make Employer Contributions (other than Elective Deferrals) on behalf of Long-Term, Part-Time Employees, even if such contributions are made on behalf of other Employees eligible to participate in the Plan. In addition, the Employer may exclude Long-Term, Part-Time Employees from application of Code sections 401(a)(4), 401(k)(3), 401(k)(12), 401(k)(13), 401(m)(2), and 410(b).

B. Top-Heavy Rules – Unless otherwise elected in the Adoption Agreement Termination Amendment, the Employer will exclude all Long-Term, Part-Time Employees from the application of the vesting and benefit requirements under Code sections 416(b) and (c).

If the Employer has elected to apply the Safe Harbor CODA provisions to this Plan and the Employer has elected in the Adoption Agreement Termination Amendment to exclude Long-Term, Part-Time Employees from receiving Safe Harbor Contributions and/or the application of Code sections 401(a)(4), 401(k)(3), 401(m)(2), and 410(b), the Plan will still not be treated as a Top-Heavy Plan pursuant to Plan Section 7.19(D) due to such exclusions.

Notwithstanding the preceding, except as otherwise indicated in rules promulgated by the IRS, this Plan Section 3.17 shall cease to apply to any Employee as of the first Plan Year beginning after the Plan Year in which the Employee completes at least 1,000 Hours of Service.

The Basic Plan Document section entitled* Contributions *is modified by adding the following as Section 3.18:
Difficulty of Care Contributions
A Participant may make contributions to, or receive allocations under, the Plan that are based on the Participant receiving Difficulty of Care Payments, even if the Participant has no other Compensation. Such amounts will be treated as Nondeductible Employee Contributions to the Plan, except as otherwise provided herein or by law or regulation.

SECTION FIVE: DISTRIBUTIONS AND LOANS TO PARTICIPANTS

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(A)(2)(f):
amounts invested in a Lifetime Income Investment in accordance with Plan Section 5.01(D)(5);

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(A)(2)(g):
if elected in the Adoption Agreement Termination Amendment, a Qualified Birth or Adoption Distribution in accordance with Plan Section 5.01(D)(6);

The Basic Plan Document section entitled* Distributions *is modified by replacing paragraphs two and three in Section 5.01(C)(1) with the following:
If elected in the Adoption Agreement, a Participant in a money purchase pension plan who is not otherwise eligible to receive a distribution of their Individual Account may take a distribution of all or a part of their Individual Account when they reach age 62. If elected in the Adoption Agreement Termination Amendment, such distributions may be taken at the age stated in the Adoption Agreement Termination Amendment, but no earlier than the attainment of age 59½.

If the Plan is a profit sharing plan, a Participant who is not otherwise eligible to receive a distribution of their Individual Account may elect to receive an in-service distribution of all or part of the Vested portion of their Individual Account attributable to transfers of money purchase pension contributions when they are eligible to receive an in-service distribution of any Employer Contributions under the Plan. Notwithstanding the foregoing, unless an earlier date is elected in the Adoption Agreement Termination Amendment, effective as of the first day of the Plan Year beginning on or after January 1, 2023, if any Employer Contributions are available for an in-service prior to age 59½, amounts attributable to transfers of money purchase pension contributions will be available for in-service distribution at age 59½. Unless an earlier date is elected in the Adoption Agreement Termination Amendment, for Plan Years beginning before January 1, 2023, if any Employer Contributions are available for an in-service distribution prior to age 62, amounts attributable to transfers of money purchase pension contributions will be available for an in-service distribution at age 62.

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(D)(5):
5. Portability of Lifetime Income – In accordance with Code section 401(a)(38) and related guidance, a Participant may at any time, and upon a request submitted to the Plan Administrator (either in writing or in any other form permitted under rules promulgated by the IRS and DOL), withdraw amounts invested in a Lifetime Income Investment in the form of a Direct Rollover described in Code

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section 401(a)(31)(A) to an Eligible Retirement Plan or a Qualified Plan Distribution Annuity Contract. Such distributions must be made on or after the date that is 90 days prior to the date on which such Lifetime Income Investment is no longer authorized to be held as an investment option under the Plan.

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(D)(6):

6. Qualified Birth or Adoption Distributions – If elected in the Adoption Agreement Termination Amendment, Participants may take Qualified Birth or Adoption Distributions on or after January 1, 2020. The aggregate amount of such distributions from all plans maintained by the Employer, including all plans maintained by a Related Employer, to such individual with respect to any birth or adoption may not exceed $5,000.

Notwithstanding the preceding, a Participant in a money purchase pension plan may only take a Qualified Birth or Adoption Distribution if they are otherwise eligible to receive a distribution of their Individual Account. In addition, if the Plan is a profit sharing plan, all or part of the Vested portion of a Participant's Individual Account that is attributable to transfers of money purchase pension contributions may only be taken as a Qualified Birth or Adoption Distribution if the Participant is eligible to receive an in-service distribution of any Employer Contributions under the Plan pursuant to Plan Section 5.01(C)(1).

The Basic Plan Document section entitled* Required Minimum Distribution Requirements *is modified by adding the following to the end of Section 5.05(B)(1):

If the Designated Beneficiary is an Eligible Designated Beneficiary, all references in this Plan Section 5.05(B)(1) and Section Five, Part D, of the Adoption Agreement to the "five-year rule," "Designated Beneficiary," or "fifth" as it relates to an election under this paragraph shall be effectively changed to the "ten-year rule," "Eligible Designated Beneficiary," and "tenth," respectively.

The Basic Plan Document section entitled* Required Minimum Distribution Requirements *is modified by adding the following as Section 5.05(D)(1)(c):

Death On or After January 1, 2020 – With respect to a Participant who dies on or after January 1, 2020, except as otherwise provided by the IRS under regulation or other guidance, the Participant's entire remaining interest will generally be distributed by December 31 of the year containing the 10th anniversary of the Participant's death unless the Designated Beneficiary is an Eligible Designated Beneficiary or there is no Designated Beneficiary for purposes of determining a distribution period.

If the Designated Beneficiary is an Eligible Designated Beneficiary, the entire remaining interest may be distributed (in accordance with Code section 401(a)(9) and the corresponding Treasury Regulations) over the remaining Life Expectancy of the Eligible Designated Beneficiary. Life Expectancy distributions to an Eligible Designated Beneficiary must generally commence by December 31 of the year following the year of the Participant's death. For certain trust Beneficiaries (e.g., an Applicable Multi-Beneficiary Trust which meets the requirements of Code section 401(a)(9)(H)(iv)) the entire interest may be distributed over the remaining Life Expectancy of the trust Beneficiary. The remaining Life Expectancy is calculated using the age of the Eligible Designated Beneficiary or trust Beneficiary, as applicable, in the year following the year of the Participant's death, reduced by one for each subsequent year.

If the Participant's surviving Spouse is the Eligible Designated Beneficiary, distributions to the surviving Spouse will begin by December 31 of the calendar year immediately following the calendar year in which the Participant died. The minimum amount that will be distributed for each Distribution Calendar Year after the year of the Participant's death is the quotient obtained by dividing the Participant's benefit by the longer of the remaining Life Expectancy of the Participant or the remaining Life Expectancy of the surviving Spouse. The Participant's remaining Life Expectancy is calculated using the age of the Participant in the year of death, reduced by one for each subsequent year. The remaining Life Expectancy of the surviving Spouse is calculated for each Distribution Calendar Year after the year of the Participant's death using the surviving Spouse's age as of the Spouse's birthday in that year. For Distribution Calendar Years after the year of the surviving Spouse's death, the remaining Life Expectancy of the surviving Spouse is calculated using the age of the surviving Spouse as of the Spouse's birthday in the calendar year of the Spouse's death, reduced by one for each subsequent calendar year.

If the Participant's Eligible Designated Beneficiary is the Participant's minor child, Life Expectancy payments must begin by December 31 of the year following the year of the Participant's death and continue until the child reaches the age of majority. Unless the remaining interest is payable to the Participant's surviving Spouse once the age of majority is reached, the Beneficiary shall cease to be an Eligible Designated Beneficiary as of the date the child reaches the age of majority and, except as otherwise provided by the IRS under regulation or other guidance, will have 10 years to deplete the account with payments continuing at least as rapidly as in years prior to reaching the age of majority.

If a Beneficiary other than a person (including certain trusts) is named, the Participant will be treated as having no Designated Beneficiary for purposes of determining the distribution period. If there is no Designated Beneficiary, distributions will commence using the Participant's remaining Life Expectancy, calculated using the age of the Participant in the year of death, reduced by one in each subsequent year.

The provisions of this Plan Section 5.05(D)(1)(c) will not apply to a qualified annuity (as defined in section 401 of the SECURE Act and related guidance) that is a binding annuity contract in effect as of December 20, 2019, and at all times thereafter.

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The Basic Plan Document section entitled* Required Minimum Distribution Requirements *is modified by adding the following as Section 5.05(D)(2)(c):

Death On Or After January 1, 2020 – With respect to Participants who die on or after January 1, 2020, except as otherwise provided by the IRS under regulation or other guidance, the Participant's entire remaining interest will generally be distributed by December 31 of the year containing the tenth anniversary of the Participant's death unless the Designated Beneficiary is an Eligible Designated Beneficiary or there is no Designated Beneficiary for purposes of determining a distribution period.

If the Designated Beneficiary is an Eligible Designated Beneficiary, the entire remaining interest may be distributed (in accordance with Code section 401(a)(9) and the corresponding Treasury Regulations) over the remaining Life Expectancy of the Eligible Designated Beneficiary. Life Expectancy distributions to an Eligible Designated Beneficiary must generally commence by December 31 of the year following the year of the Participant's death. For certain trust Beneficiaries (e.g., an Applicable Multi-Beneficiary Trust which meets the requirements of Code section 401(a)(9)(H)(iv)) the entire interest may be distributed over the remaining Life Expectancy of the trust Beneficiary. The remaining Life Expectancy is calculated using the age of the Eligible Designated Beneficiary or trust Beneficiary, as applicable, in the year following the year of the Participant's death, reduced by one for each subsequent year.

If the Participant's surviving Spouse is the Eligible Designated Beneficiary, distributions to the surviving Spouse will begin by December 31 of the calendar year immediately following the calendar year in which the Participant died, or by December 31 of the calendar year in which the Participant would have attained age 72, if later. The minimum amount that will be distributed for each Distribution Calendar Year after the year of the Participant's death is the quotient obtained by dividing the Participant's benefit by the remaining Life Expectancy of the surviving Spouse. The remaining Life Expectancy of the surviving Spouse is calculated for each Distribution Calendar Year after the year of the Participant's death using the surviving Spouse's age as of the Spouse's birthday in that year. For Distribution Calendar Years after the year of the surviving Spouse's death, the remaining Life Expectancy of the surviving Spouse is calculated using the age of the surviving Spouse as of the Spouse's birthday in the calendar year of the Spouse's death, reduced by one for each subsequent calendar year.

If the Participant's Eligible Designated Beneficiary is the Participant's minor child, Life Expectancy payments must begin by December 31 of the year following the year of the Participant's death and continue until the child reaches the age of majority. Unless the remaining interest is payable to the Participant's surviving Spouse once the age of majority is reached, the Beneficiary shall cease to be an Eligible Designated Beneficiary as of the date the child reaches the age of majority and, except as otherwise provided by the IRS under regulation or other guidance, will have 10 years to deplete the account with payments continuing at least as rapidly as in years prior to reaching the age of majority.

If a Beneficiary other than a person (including certain trusts) is named, the Participant will be treated as having no Designated Beneficiary for purposes of determining the distribution period. If there is no Designated Beneficiary, the entire interest must be distributed by December 31 of the year containing the fifth anniversary of the Participant's death.

The provisions of this Plan Section 5.05(D)(2)(c) will not apply to a qualified annuity (as defined in Section 401 of the SECURE Act and related guidance) that is a binding annuity contract in effect as of December 20, 2019, and at all times thereafter.

The Basic Plan Document section entitled* Loans to Participants *is modified by adding the following as Section 5.16(I):
For plan loans made on or after December 21, 2019, no loans will be made through credit cards or other similar arrangements.

SECTION SEVEN: MISCELLANEOUS

The Basic Plan Document section entitled* Multiple Employer Plan *is modified by adding the following as Section 7.26(F):

F. Qualification Requirements – The Plan will not be treated as failing to meet the applicable requirements under the Code merely because one or more Participating Employers fail to take such actions as required by the Participating Employers to keep the Plan in compliance with all Code and regulatory requirements.

In the case of any Participating Employer who fails to take such actions as described above, the Plan will not be treated as failing to meet the applicable requirements under the Code if corrective action is taken, as provided herein or by law or regulation. Such corrective action includes transferring the assets of the Plan attributable to the Participants or Beneficiaries of the Participating Employer to an Eligible Retirement Plan for each Participant or Beneficiary whose account is transferred, or to any other arrangement that the Secretary of the Treasury determines is appropriate. If the Secretary of the Treasury determines it is in the best interests of the Participants or Beneficiaries of the Participating Employer, the assets may be retained in the Plan. Except as otherwise provided by the Secretary of the Treasury, the Participating Employer will be liable for any liabilities with respect to the Plan attributable to the Participants or Beneficiaries of the Participating Employer.

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PART THREE: CORONAVIRUS AID, RELIEF, AND ECONOMIC SECURITY ACT OF 2020

The following is intended to provide good faith compliance with certain provisions of the Coronavirus Aid, Relief and Economic Security Act of 2020 (CARES) and related guidance. Except as otherwise provided in the Adoption Agreement Termination Amendment or indicated below, these provisions are effective for calendar years beginning on or after January 1, 2020.

In the event that the CARES provisions in this Part modify or update good faith amendment provisions that are addressed in other Parts of this Basic Plan Document Termination Amendment, such good faith amendment provisions will be identified by referencing the applicable Act to which they relate (e.g., "SECURE").

DEFINITIONS

2020 RMD

2020 RMD *is added to the Plan as a new defined term with the following definition:*

Means a required minimum distribution 1) that would have been distributed to a Participant or Beneficiary for 2020, or 2) that would have been distributed to a Participant or Beneficiary in 2020 for 2019 but for the enactment of Code section 401(a)(9)(I).

CORONAVIRUS-RELATED DISTRIBUTION (CRD)

Coronavirus-Related Distribution *is added to the Plan as a new defined term with the following definition:*

Means a distribution, other than certain distributions that are not eligible rollover distributions under Treasury Regulation section 1.402(c)-2 (e.g., corrective distributions of excess deferrals and contributions, loans that are treated as deemed loans, dividends paid on employer securities, and contributions made to the Plan as Elective Deferrals under an EACA or QACA that are subsequently distributed from the Plan as permissible withdrawals), that is made on or after January 1, 2020, and before December 31, 2020, to a Participant or Beneficiary due to becoming a Qualified Individual.

ELIGIBLE ROLLOVER DISTRIBUTION

The Plan's definition of* Eligible Rollover Distribution *is modified by adding the following as a new paragraph to the end:

Notwithstanding the foregoing, solely for purposes of applying the Direct Rollover distribution provisions of the Plan, 2020 RMDs and Extended 2020 RMDs distributed for 2019 or 2020, as applicable, will be treated as Eligible Rollover Distributions, unless otherwise elected in the Adoption Agreement Termination Amendment.

EXTENDED 2020 RMD

Extended 2020 RMD *is added to the Plan as a new defined term with the following definition:*

Means one or more payments in a series of substantially equal distributions (that includes the 2020 RMD) made at least annually and expected to last for the life (or Life Expectancy) of the Participant, the joint lives (or joint life expectancies) of the Participant and the Participant's Designated Beneficiary, or for a period of at least 10 years.

QUALIFIED INDIVIDUAL

Qualified Individual *is added to the Plan as a new defined term with the following definition:*

Means an individual (i) who is diagnosed with the virus SARS-CoV-2 or with coronavirus disease 2019 (referred to collectively as "COVID-19") by a test approved by the Centers for Disease Control and Prevention (including a test authorized under the Federal Food, Drug, and Cosmetic Act); (ii) whose spouse or dependent (as defined in Code section 152) is diagnosed with COVID-19 by such a test; or (iii) who experiences adverse financial consequences as a result of being quarantined, being furloughed or laid off, or having work hours reduced due to COVID-19, being unable to work due to lack of child care due to COVID-19, closing or reducing hours of a business owned or operated by the individual due to COVID-19, having a reduction in pay (or self-employment income) due to COVID-19 or having a job offer rescinded or start date for a job delayed due to COVID-19, the individual's Spouse or a member of the individual's household being quarantined, being furloughed or laid off, or having work hours reduced due to COVID-19, being unable to work due to lack of childcare due to COVID-19, having a reduction in pay (or self-employment income) due to COVID-19, or having a job offer rescinded or start date for a job delayed due to COVID-19, or closing or reducing hours of a business owned or operated by the individual's spouse or a member of the individual's household due to COVID-19, or other factors as determined by the Secretary of the Treasury.

For this purpose, a "member of the individual's household" is someone who shares the individual's principal residence.

REQUIRED BEGINNING DATE

The Plan's definition of* Required Beginning Date *is modified by adding the following as a new paragraph to the end:

If a 2020 RMD or Extended 2020 RMD is not removed from the Plan for any Participant according to Code section 401(a)(9)(I) and the Plan is subject to the Qualified Joint and Survivor Annuity provisions of the Basic Plan Document, the requirements of IRS Notice 97-75, Q&A-8, must be satisfied as required by the IRS.

Unless otherwise elected in the Adoption Agreement Termination Amendment, no new Annuity Starting Date will apply upon recommencement of RMDs for 2021.

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SECTION THREE: CONTRIBUTIONS

The Basic Plan Document section entitled* Rollover Contributions *is modified by adding the following after the last paragraph of Section 3.07, as updated by SECURE:

Unless otherwise elected in the Adoption Agreement Termination Amendment, if the Plan allows rollover contributions, 2020 RMDs and Extended 2020 RMDs distributed for 2020 will be considered Eligible Rollover Distributions and may be rolled over to the Plan in accordance with this Plan Section 3.07 and the Plan's existing rollover contribution elections.

A Participant who receives a Coronavirus-Related Distribution from the Plan may, in accordance with the Plan's existing rollover contribution elections and pursuant to rules promulgated by the IRS, make one or more repayments to the Plan in an aggregate amount not to exceed the amount of such distribution. In addition, if elected in the Adoption Agreement Termination Amendment, a Participant who receives a Coronavirus-Related Distribution that is taken from a source other than the Plan may, in accordance with the Adopting Employer's elections in the Adoption Agreement Termination Amendment and pursuant to rules promulgated by the IRS, make one or more repayments to the Plan in an aggregate amount not to exceed the amount of such distribution. For purposes of any repayments to the Plan under this Plan Section 3.07, the Participant will be treated as having received the Coronavirus-Related Distribution in an eligible rollover distribution (as defined in Code section 402(c)(4)) and as having contributed the amount to the Eligible Retirement Plan within 60 days of the distribution.

The Basic Plan Document section entitled* Deemed IRAs *is modified by adding the following as Section 3.15(C)

Temporary Waiver of Required Minimum Distribution Requirements – Notwithstanding anything in the Plan to the contrary, IRA Owners and their beneficiaries who would have been required to receive a 2020 RMD but for the enactment of Code section 401(a)(9)(I) will be given the choice to receive such distributions for 2019 or 2020, as applicable.

If an IRA Owner or beneficiary described above does not elect to receive such amount, the 2020 RMD may be either retained or distributed according to the terms of the IRA's governing document.

In addition, notwithstanding anything in the Plan to the contrary, if an IRA beneficiary's balance is required to be distributed under Code section 401(a)(9)(B)(ii), the five-year period described in such section shall be determined without regard to calendar year 2020.

SECTION FIVE: DISTRIBUTIONS AND LOANS TO PARTICIPANTS

The Basic Plan Document section entitled* Distributions *is modified by adding the following as the next alphabetically ordered item in Section 5.01(A)(2), as updated by SECURE:

if elected in the Adoption Agreement Termination Amendment, a Coronavirus-Related Distribution in accordance with Plan Section 5.01(D)(7);

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(D)(7):

Coronavirus-Related Distribution – If elected in the Adoption Agreement Termination Amendment, a Participant who is a Qualified Individual may take a Coronavirus-Related Distribution from the Plan. However, the aggregate amount of such distributions from all plans maintained by the Employer, including all plans maintained by a Related Employer, for any taxable year to such individual may not exceed $100,000.

Notwithstanding the preceding, in the case of a money purchase pension plan, a Coronavirus-Related Distribution will be treated as meeting the distribution rules of Code section 401(a) pursuant to Section 2202 of the CARES Act (as amended by the COVID-Related Tax Relief Act of 2020). If the Plan is a profit sharing plan, a Coronavirus-Related Distribution of all or part of the Vested portion of a Qualified Individual's Individual Account attributable to transfers of money purchase pension contributions will be treated as meeting the distribution rules of Code section 401(a).

The Basic Plan Document section entitled* Required Minimum Distribution Requirements *is modified by adding the following as Section 5.05(G):

Temporary Waiver of Required Minimum Distribution Requirements – Notwithstanding anything in the Plan or the definition of Distribution Calendar Year to the contrary, Participants and Beneficiaries who would have been required to receive a 2020 RMD or Extended 2020 RMD but for the enactment of Code section 401(a)(9)(I) will be given the choice to receive such distributions for 2019 or 2020, if applicable, unless otherwise indicated in the Adoption Agreement Termination Amendment.

If a Participant or Beneficiary described above is allowed to remove their 2020 RMD or Extended 2020 RMD but does not elect to receive such amount, the 2020 RMD or Extended 2020 RMD will be retained in the Plan unless otherwise indicated in the Adoption Agreement Termination Amendment.

In addition, notwithstanding anything in the Plan to the contrary, if a Beneficiary's balance is required to be distributed under Code section 401(a)(9)(B)(ii), the five-year period described in such section shall be determined without regard to calendar year 2020.

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The Basic Plan Document section entitled* Loans to Participants *is modified by adding the following after the last paragraph of Section 5.16:

If elected in the Adoption Agreement Termination Amendment, a Participant who is a Qualified Individual will be entitled to request a loan from the Fund during the period beginning on March 27, 2020, and ending on September 22, 2020. With respect to a loan that is made to a Qualified Individual, the maximum loan percentage in Plan Section 5.16 shall be applied by substituting "100 percent of the Present Value of the nonforfeitable Individual Account of the Participant" for "50 percent of the Present Value of the nonforfeitable Individual Account of the Participant," and the maximum loan amount in Plan Section 5.16 shall be determined by substituting "$100,000" for "$50,000." The Plan Administrator may rely on the Participant's certification that they are a Qualified Individual, as permitted by the IRS, for purposes of determining whether a loan is a coronavirus-related loan.

In the case of a Participant who is a Qualified Individual with an outstanding loan from the Fund on or after March 27, 2020, 1) if the due date to repay the loan, which otherwise meets the terms of repayment, occurs during the period beginning on March 27, 2020, and ending on December 31, 2020, such due date shall be delayed for one year, 2) any subsequent repayments with respect to any such loan shall be appropriately adjusted to reflect the delay in the due date and any interest accruing during such delay, and 3) in determining compliance with the repayment terms of the loan, the one-year period described above shall be disregarded.

PART FOUR: SECURE 2.0 ACT OF 2022

The following is intended to provide good faith compliance with certain provisions of the Consolidated Appropriations Act, 2023 (CAA), including the SECURE 2.0 Act of 2022 (SECURE 2.0) and related guidance. Except as otherwise provided in the Adoption Agreement Termination Amendment or as indicated below, these provisions are effective on the first day of the Plan Year beginning on or after January 1, 2023.

In the event that the SECURE 2.0 provisions in this Part modify or update good faith amendment provisions that are addressed in other Parts of this Basic Plan Document Termination Amendment, such good faith amendment provisions will be identified by referencing the applicable Act to which they relate (e.g., "SECURE").

DEFINITIONS

APPLICABLE MULTI-BENEFICARY TRUST

The Plan's definition of* Applicable Multi-Beneficiary Trust *that was added by SECURE is modified by adding the following to the end:

For purposes of determining if a trust is an Applicable Multi-Beneficiary Trust, effective January 1, 2023, any beneficiary of the trust that is an organization described in Code Section 408(d)(8)(B)(i) shall be treated as a Designated Beneficiary.

CATCH-UP CONTRIBUTIONS

The Plan's definition of* Catch-Up Contributions *is modified by replacing the last sentence with the following:

If elected by the Employer in the Adoption Agreement Termination Amendment, the Catch-up Contributions limit is increased for taxable years beginning on or after January 1, 2025 to the greater of $10,000 or 150% of the Catch-up Contributions limit in effect for the year. Such increased limit is applicable only to Participants who attain ages 60, 61, 62, or 63 during the tax year. For taxable years beginning on or after January 1, 2026, the Catch-up Contributions limit for such Participants attaining ages 60, 61, 62 or 63 during the tax year will be adjusted by the Secretary of Treasury for cost-of-living increases at the same time and in the same manner as the adjustment described above in this definition, except the base period taken into account will be the calendar quarter beginning July 1, 2024.

If the Plan is a SIMPLE 401(k) Plan, the amount of an Eligible Employee's Elective Deferrals permitted for a SIMPLE 401(k) Year is increased for Employees age 50 or older by the end of the SIMPLE 401(k) Year by the amount of allowable Catch-up Contributions. The dollar limit on Catch-up Contributions was $2,500 for taxable years beginning in 2012. The $2,500 limit is adjusted by the Secretary of the Treasury, in multiples of $500, for the cost- of-living increases under Code section 414(v)(2)(C). Catch-up Contributions are otherwise treated the same as other Elective Deferrals. Effective for taxable years beginning after December 31, 2023, if the Employer had 25 or fewer Employees who received at least $5,000 in Compensation from the Employer for the preceding year, the dollar limitation on Elective Deferrals for a SIMPLE 401(k) Year for Employees age 50 or older by the end of the SIMPLE 401(k) Year is increased to 110 percent of the otherwise applicable SIMPLE 401(k) Plan Catch-up Contributions limit established by the Secretary of the Treasury for the 2024 calendar year. The foregoing Catch-up Contributions limit is adjusted by the Secretary of the Treasury, in multiples of $500, under Code section 414(v)(2)(C).

If the Plan is a SIMPLE 401(k) Plan and if elected by the Employer in the Adoption Agreement Termination Amendment, for taxable years beginning on or after January 1, 2025, the dollar limitation on Elective Deferrals for a SIMPLE 401(k) Year is increased to the greater of $5,000 or 150% of the otherwise applicable SIMPLE 401(k) Plan Catch-Up Contributions limit in effect for 2025. Such increased limit is applicable only to Eligible Employees who attain ages 60, 61, 62, or 63 during the tax year. For taxable years beginning on or after January 1, 2026, the Catch-Up Contributions limit for such Eligible Employees attaining ages 60, 61, 62 or 63 will be adjusted by the Secretary of Treasury for cost-of-living increases at the same time and in the same manner as the adjustment described above in this definition, except the base period taken into account will be the calendar quarter beginning July 1, 2024.

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Different limits apply to Catch-up Contributions Starter 401(k) Plans.

Additionally, effective for taxable years beginning after December 31, 2023, or as otherwise provided in accordance with any subsequent guidance issued by the IRS, a Participant whose wages (as defined in Code section 3121(a)) from the Employer for the preceding calendar year exceed $145,000 may not make Catch-up Contributions to the Plan unless such contributions are made as Roth Elective Deferrals. The $145,000 wage amount is adjusted by the Secretary of the Treasury, in multiples of $5,000, for cost-of-living increases under Code section 414(v)(7)(E).

DESIGNATED ROTH CONTRIBUTIONS

Designated Roth Contributions *is added to the Plan as a new defined term with the following definition:*

Means, if the Plan is a profit sharing plan and if elected in the Adoption Agreement Termination Amendment, Employer Profit Sharing Contributions, Matching Contributions, Safe Harbor Contributions, Qualified Nonelective Contributions, or Qualified Matching Contributions that are made to the Plan pursuant to Adoption Agreement Section Three and that the Participant has elected to be included in the Participant's gross income at the time such contribution is made by the Employer and be irrevocably treated as Designated Roth Contributions. If the Plan is a money purchase pension plan and if elected in the Adoptions Agreement Termination Amendment, Employer Money Purchase Pension Contributions, Matching Contributions, or Qualified Matching Contributions that are made to the Plan pursuant to the Adoption Agreement Section Three and that the Participant has elected to be included in the Participant's gross income at the time such contribution is made by the Employer will be irrevocably treated as Designated Roth Contributions. The Participant must be fully vested in the Employer Profit Sharing Contributions, Employer Money Purchase Pension Contributions, or Matching Contributions that will be treated as Designated Roth Contributions. The Plan Administrator will have the authority to establish uniform and nondiscriminatory procedures for making such elections, provided that the Participant may make or change such election regarding Designated Roth Contributions at least once during the Plan Year.

DOMESTIC RELATIONS ORDER

The Plan's definition of* Domestic Relations Order *is modified by replacing (b) with the following:

b. is made pursuant to state domestic relations law (including applicable community property laws) or, effective January 1, 2023, Indian tribal government law.

EFFECTIVE DATE

The Plan's definition of* Effective Date *is modified by adding the following after the paragraph that was added by SECURE:

If the Plan is adopted after the close of the initial Plan Year of the Plan and the Adopting Employer is an unincorporated trade or business that is owned entirely by a Self-Employed Individual who is the only Employee of the Adopting Employer, any Elective Deferrals made to the Plan prior to the Adopting Employer's deadline for filing a tax return (not including any applicable filing extensions) for the taxable year that contains such initial Plan Year end, shall be treated as contributed prior to the end of such initial Plan Year.

ELECTIVE DEFERRALS

The Plan's definition of* Elective Deferrals *is modified by adding the following after the last paragraph:

If the Employer has elected to apply the Safe Harbor CODA provisions of Plan Section 3.03, the QACA provisions of Plan Section 3.01(F), the SIMPLE 401(k) Plan provisions of Plan Sections 3.01(I), or the Starter 401(k) Plan provisions of Plan Section 3.01(L) and the Plan replaced a SIMPLE IRA plan mid-year, the amount of Elective Deferrals that may be contributed to this Plan for the initial Plan Year will be limited based upon the amount of elective deferrals that were contributed to the SIMPLE IRA during such Plan Year. The total amount that may be contributed as Elective Deferrals to this Plan combined with the elective deferrals and Catch-up Contributions made to the Employer's terminated SIMPLE IRA plan may not exceed the weighted average of the salary reduction contribution and elective contribution limits for each of the plans over the number of days in the year during which each plan was in effect.

The Employer may offer a financial incentive with regard to an Employee establishing and maintaining a deferral election under the Plan as long as such incentives are de minimis and not paid for with Plan assets.

ELIGIBLE EMPLOYEE

The Plan's definition of* Eligible Employee *is modified by inserting the following after the first sentence:

If the Employer has adopted a Starter 401(k) Plan, the Employer may not exclude as an Eligible Employee any employe described in Code section 410(b)(3) or (4).

ELIGIBLE EMPLOYER FOR STARTER 401(k) PLAN

Eligible Employer for Starter 401(k) Plan *is added to the Plan as a new defined term with the following definition:*

Means an Employer which does not maintain a plan pursuant to Code section 401(a), 403(a), 403(b), 408(k), 408(p), or 457(b) for which contributions are made or benefits accrued, or a trust pursuant to Code section 501(c)(18) to which deductible contributions are made for the calendar year.

ELIGIBLE ROLLOVER DISTRIBUTION

The Plan's definition of* Eligible Rollover Distribution *is modified by adding the following as a new paragraph to the end:

In the case of an inadvertent overpayment of all or a portion of a Participant's Individual Account from the Plan occurring on or after December 29, 2022 that is transferred to an Eligible Retirement Plan by or on behalf of a Participant or Beneficiary (1) the portion of such overpayment with respect to which recoupment is not sought on behalf of the Plan will be treated as having been paid in an

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Eligible Rollover Distribution if the payment would have been an Eligible Rollover Distribution but for being an overpayment, and (2) the portion of such overpayment with respect to which recoupment is sought on behalf of the Plan will be permitted to be returned to such Plan and in such case will be treated as an Eligible Rollover Distribution transferred to such Plan by the Participant or Beneficiary who received such overpayment (and the plans making and receiving such transfer will be treated as permitting such transfer).

INDIRECT IN-PLAN ROTH ROLLOVER

The Plan's definition of* Indirect In-Plan Roth Rollover *is modified by replacing the defined term with the following:

Means an Indirect Rollover of an Eligible Rollover Distribution from a Recipient's Individual Account (other than from Roth Elective Deferrals, Designated Roth Contributions, or Roth rollover contributions), to a Roth rollover account established for the Recipient.

MILITARY SPOUSE

Military Spouse *is added to the Plan as a new defined term with the following definition:*

Means a non-Highly Compensated Employee who, as of the first day of the Employee's employment with the Employer, is married to a member of the United States uniformed services, as defined in section 101(a)(5) of title 10 of the United States Code, serving on active duty.

NONDEDUCTIBLE EMPLOYEE CONTRIBUTIONS

The Plan's definition of* Nondeductible Employee Contributions *is modified by replacing the defined term with the following:

Means any contribution, other than Roth Elective Deferrals or Designated Roth Contributions, made to the Plan by or on behalf of a Participant that is included in the Participant's gross income in the year in which made and that is maintained under a separate account to which earnings and losses are allocated.

PARTICIPANT'S BENEFIT

The Plan's definition of* Participant's Benefit *is modified by adding the following to the end:

Effective December 29, 2022, the Plan Administrator shall have the authority to establish uniform and nondiscriminatory procedures determining whether the Participant's Benefit shall include the value of any annuity contracts from which payments are made in accordance with Treasury regulation section 1.401(a)(9)-6 (or any successor regulation). Effective for tax years beginning after December 31, 2023, the Participant's Benefit shall not include the value of any Roth Elective Deferrals, In-Plan Roth Rollovers, Designated Roth Contributions, or rollover contributions of Roth elective deferrals, including any attributable earnings.

QUALIFIED STUDENT LOAN PAYMENT

Qualified Student Loan Payment *is added to the Plan as a new defined term with the following definition:*

Means an amount paid by an Employee in repayment of a qualified education loan (as defined in Code section 221(d)) incurred by the Employee to pay qualified higher education expenses. However, the aggregate amount of such payments for the year may not exceed the difference between the dollar limitation contained in Code section 402(g) (or the Employee's Compensation for the year, if lesser) and the Elective Deferrals made to the Plan by the Participant for the year. If elected in the Adoption Agreement Termination Amendment, Qualified Student Loan Payments shall be treated as Elective Deferrals for purposes of calculating the Plan's Matching Contributions. However, Qualified Student Loan Payments shall not otherwise be treated as a contribution under the Plan.

REQUIRED BEGINNING DATE

The Plan's definition of* Required Beginning Date *is modified by adding the following as a new paragraph to the end of the first paragraph that was updated by SECURE:

Notwithstanding the preceding, for distributions required to be made after December 31, 2022, with respect to individuals who attain age 72 after such date, any reference in the Basic Plan Document or the Adoption Agreement to "72" as it relates to the Required Beginning Date shall be effectively changed to "73".

YEAR OF VESTING SERVICE

The Plan's definition of* Year of Vesting Service *is modified by inserting the following before the last sentence of the paragraph that was updated by SECURE:

In addition, for Plan Years beginning on or after December 31, 2024, in measuring the Years of Vesting Service with respect to an Employee who is a Long-Term, Part-Time Employee or a Former Long-Term, Part-Time Employee, the 12-consecutive month periods beginning before January 1, 2021 will not be taken into account.

SECTION TWO: ELIGIBILITY REQUIREMENTS

The Basic Plan Document section entitled* Eligibility to Participate *is modified by replacing the second paragraph of Section 2.01 as added by SECURE:

Except as otherwise indicated in rules promulgated by the IRS, for Plan Years beginning after December 31, 2024, pursuant to Code section 401(k)(2)(D), eligibility service requirements must be coordinated such that the Plan does not require, as a condition of participation for purposes of making Elective Deferrals, that an Employee complete eligibility service requirements with the Employer maintaining the Plan extending beyond the close of the earlier of 1) the period permitted under Code section 410(a)(1)(A)(ii), or 2) the first period of two consecutive 12-month periods during each of which the Employee, other than a union employee or non-resident alien described in items (A) and (B) below or an Employee who belongs to a class of Employees excluded from participation as indicated in the Adoption Agreement and as permitted by the Treasury Regulations and related guidance, completes at least 500 Hours of

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Service. For purposes of determining an Employee's eligibility under item 2) for Plan Years beginning after December 31, 2024, 12-month periods beginning before January 1, 2023 will not be taken into account and such requirement will not apply unless the Employee has attained the age of 21 by the close of the last 12-month period. If elected by the Adopting Employer in the Adoption Agreement Termination Amendment and except as otherwise indicated in rules promulgated by the IRS, for Plan Years beginning on or after January 1, 2021, the eligibility requirements indicated in item 2) above will also apply for purposes of determining an Employee's eligibility to become a Participant in the Plan for purposes of receiving Employer Contributions (other than Elective Deferrals).

For Plan Years beginning on January 1, 2021 through December 31, 2024, the eligibility service requirement in item 2) above shall be three consecutive 12-month periods. In addition, 12-month periods before January 1, 2021 will not be taken into account for purposes of determining eligibility the three consecutive 12-month period eligibility requirement.

The Basic Plan Document section entitled* Eligibility to Participate *is modified by inserting the following after the second paragraph of Section 2.01 as added by SECURE:
If elected in the Adoption Agreement Termination Amendment, a Military Spouse will be eligible to begin participation in the Plan no later than 2 months from the date on which employment begins and will be immediately eligible to receive the amount of Employer Contributions that a similarly situated Participant who is not a Military Spouse would be eligible to receive after 2 years of service.

SECTION THREE: CONTRIBUTIONS

The Basic Plan Document section entitled* Elective Deferrals *is modified by inserting the following prior to the last sentence of Section 3.01(E)(4)(b):
These notice requirements shall not apply to any Participant who is not currently a Contributing Participant, and who has received a summary plan description, all initial notices required by the Code, ERISA and related guidance, and the annual reminder notice described in Code section 414(bb) and guidance provided thereunder.

The Basic Plan Document section entitled* Elective Deferrals *is modified by adding to Section 3.01 the following as Section 3.01(E)(7):

7. Mandatory EACA – Unless otherwise elected in the Adoption Agreement amendment, for Plan Years beginning on or after January 1, 2025, the Plan must satisfy the mandatory automatic Elective Deferral enrollment requirements in accordance with Code section 414A and related guidance provided by the IRS or Secretary of the Treasury.

    a. *EACA Provisions* - The Plan will include an EACA, as provided in Plan Section 3.01(E)(2) and defined in Code section 414(w)(3), which satisfies the following requirements.

        i. The EACA permits Participants to make permissible withdrawals in accordance with Plan Section 5.01(A)(2) and as defined in Code section 414(w)(2).

        ii. The Employer will make EACA contributions to the Plan as Elective Deferrals on behalf of each Employee who has satisfied the eligibility requirement specified in the Adoption Agreement for Elective Deferrals unless an eligible Employee has made a timely affirmative election to defer at a different rate, including zero percent. The rate of Elective Deferrals made under the Plan's EACA provisions must be applied uniformly, except as otherwise provided in Treasury Regulation section 1.414(w)-1(b)(2), and will continue until 1) the Employee provides the Employer a salary reduction agreement (either in writing or in any other form permitted under rules promulgated by the IRS and the DOL) to the contrary; 2) the Employer reduces, ceases, or suspends Elective Deferrals made on behalf of Employees so as not to exceed the limits of the Code and other rules promulgated by the IRS (e.g., Code sections 401(a)(17), 402(g), and 415 or to comply with Treasury Regulation section 1.401(k)-3(c)(v)(B)); or 3) Elective Deferrals are increased in accordance with Plan Section 3.01(E)(3).

            A. The initial rate of Elective Deferrals made on behalf of an eligible Employee under the Plan's EACA provisions during their first year of participation must be a uniform percentage of Compensation that is not less than 3 percent and not more than 10 percent. Unless otherwise indicated in the Adoption Agreement Termination Amendment, this initial rate shall be 3 percent.

            B. On the first day of each Plan Year beginning after each completed year of participation under such arrangement, the of Elective Deferrals made under the mandatory EACA provision in this Termination Amendment must be increased by 1 percent of Compensation until the percentage is at least 10 percent, but not more than 15 percent, as indicated in the Termination Amendment. Such contributions will continue unless an eligible Employee specifically elects not to have such contributions made or have such contributions made at a different percentage.

        The procedures on making affirmative salary reduction agreements, including the opportunities to make and modify such salary deferral elections, under the EACA are in Plan Section 3.01(E)(2) and as elected in the Adoption Agreement.

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iii. EACA contributions made under the arrangement, and for which no investment is elected by the eligible Employee, will be invested in accordance with the requirements of Labor Regulation section 2550.404c-5 or any successor regulations.

If the Plan is a multiple employer plan pursuant to Plan Section 7.26, the EACA requirements will apply to each Participating Employer as if they maintained their own separate plan.

b. *Exceptions* - The required EACA provisions of Plan Section 3.01(E)(7)(a) above do not apply to the following plans.

i. A SIMPLE 401(k) Plan (within the meaning of Code section 401(k)(11));

ii. A plan that includes a qualified cash or deferred arrangement that was initially adopted by the Employer before December 29, 2022;

iii. A governmental plan (within the meaning of Code section 414(d));

iv. A church plan (within the meaning of Code section 414(e));

v. A plan that includes a qualified cash or deferred arrangement while the Employer (and any predecessor employer) maintaining such deferral arrangement has been in existence for less than three years;

vi. A plan that includes a qualified cash or deferred arrangement during the period occurring before the date that is one year after the close of the first taxable year with respect to which the Employer maintaining the deferral arrangement normally employed more than 10 employees.

If the Plan is a multiple employer plan pursuant to Plan Section 7.26, the determination of whether the Plan meets an exception under items (ii), (v) or (vi) above will be made separately with respect to each Participating Employer.

The Basic Plan Document section entitled* Elective Deferrals *is modified by replacing the first sentence of Section 3.01(F)(5) that was updated by SECURE with the following:
A comprehensive notice of the Employee's rights and obligations under the Plan, written in a manner calculated to be understood by the average Eligible Employee which meets the content requirements of Code section 401(k)(13) and its associated regulations and other guidance, will be provided to affected Participants within a reasonable period of time before the start of the first Plan Year in which the QACA provisions become effective and before each subsequent Plan Year. The foregoing requirement shall not apply to an Adopting Employer who has elected the QACA Safe Harbor Nonelective Contribution option without having elected the QACA ACP Test Safe Harbor Matching Contribution option in the Adoption Agreement.

The Basic Plan Document section entitled* Elective Deferrals *is modified by adding the following as the last sentence of the first paragraph of Section 3.01(F)(5) that was updated by SECURE:
This notice requirement shall not apply to any Participant, who is not currently a Contributing Participant and who has received a summary plan description, all initial notices required by the Code, ERISA and related guidance, and the annual reminder notice described in Code section 414(bb) and guidance provided thereunder.

The Basic Plan Document section entitled* Elective Deferrals *is modified by replacing the first sentence of Section 3.01(F)(6) that was updated by SECURE with the following:
Each Eligible Employee may make or modify a deferral election during a reasonable period of time immediately following receipt of the notice described above in addition to any other election periods provided under the Plan.

The Basic Plan Document section entitled* Elective Deferrals *is modified by replacing the second paragraph in Section 3.01(I) with the following:
The total Elective Deferrals to a SIMPLE 401(k) Plan for any Eligible Employee cannot exceed the limitation on Elective Deferrals in effect for the SIMPLE 401(k) Year. The dollar limitation on Elective Deferrals to a SIMPLE 401(k) Plan was $11,500 for taxable years beginning in 2012. This limit is adjusted by the Secretary of the Treasury, in multiples of $500, for cost-of-living increases under Code section 408(p)(2)(E).

Effective for taxable years beginning after December 31, 2023, if the Employer had 25 or fewer Employees who received at least $5,000 in Compensation from the Employer for the preceding year and if elected in the Adoption Agreement Termination Amendment, the dollar limitation on Elective Deferrals to such SIMPLE 401(k) Plan is increased to 110 percent of the otherwise applicable SIMPLE 401(k) Plan annual limit established by the Secretary of the Treasury for the 2024 calendar year. The foregoing annual limit is adjusted by the Secretary of the Treasury, in multiples of $500, under Code section 408(p)(2)(E).

The Basic Plan Document section entitled* Elective Deferrals *is modified by adding the following as the last sentence of Section 3.01(J):
This notice requirement shall not apply to any Participant, who is not currently a Contributing Participant and who has received a summary plan description, all initial notices required by the Code, ERISA and related guidance, and the annual reminder notice described in Code section 414(bb) and guidance provided thereunder.

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The Basic Plan Document section entitled* Elective Deferrals *is modified by adding to Section 3.01 the following as Section 3.01(L):

Starter 401(k) Requirements – For Plan Years beginning on and after January 1, 2024, if the Employer is an Eligible Employer for Starter 401(k) Plans and has elected to apply the Starter 401(k) Plan provisions of this Plan, the Eligible Automatic Contribution provisions of Section 3.01(E) of this Plan will apply. The Employer will make contributions as Elective Deferrals to the Plan on behalf of Eligible Employees of no less than 3% and no more than 15% of Compensation as elected in Adoption Agreement Termination Amendment.

The total Elective Deferrals permitted for any Eligible Employee cannot exceed $6,000 for any calendar year. This limit is adjusted by the Secretary of the Treasury, in multiples of $500, for cost-of-living increases under Code section 401(k)(16)(D). The amount of an Eligible Employee's Elective Deferrals permitted for a Starter 401(k) Plan is increased for Employees age 50 or older by the end of their taxable year by $1,000. The $1,000 limit shall be adjusted by the Secretary of the Treasury, in multiples of $100, under Code section 219(b)(5)(C)(iii).

The Basic Plan Document section entitled* Matching Contributions *is modified by replacing the third and fourth paragraphs of Section 3.02 with the following:

For Plan Years beginning on and after January 1, 2024, if elected in the Adoption Agreement Termination Amendment, the Employer shall make Matching Contributions under the Plan on behalf of Qualifying Contributing Participants with respect to Qualified Student Loan Payments. To be a Qualifying Contributing Participant for a Plan Year for purposes of this Matching Contribution, the Participant must satisfy any age and eligibility service and other requirements that are specified for Matching Contributions in the Adoption Agreement and certify at least annually to the Plan Administrator that the amounts being reported to the Employer for purposes of the Matching Contribution have been paid as Qualified Student Loan Payments. Matching Contributions that are made to the Plan with respect to Qualified Student Loan Payments, will be made in accordance with the Matching Contribution formula elected in the Adoption Agreement and are otherwise the same as Matching Contributions that are made to the Plan with respect to Elective Deferrals.

Notwithstanding the preceding, if an Eligible Employer has established a SIMPLE 401(k) Plan, the Employer will contribute a Matching Contribution to the Plan on behalf of each Employee who makes an Elective Deferral contribution as set forth in Plan Section 3.01(I). The amount of the Matching Contribution will be equal to the Employee's Elective Deferral contribution up to a limit of three percent of the Employee's Compensation for the entire SIMPLE 401(k) Year. Effective for taxable years beginning after December 31, 2023, if the Employer had more than 25 Employees who received at least $5,000 of Compensation from the Employer for the preceding year and the Employer so elected in the Adoption Agreement Termination Amendment, the Employer will increase the Matching Contribution limit to four percent of the Employee's Compensation for the entire SIMPLE 401(k) Year.

For any year, instead of a Matching Contribution to a SIMPLE 401(k) Plan, however, the Employer may elect to contribute a nonelective contribution of two percent of Compensation for the full SIMPLE 401(k) Year for each Eligible Employee who received at least $5,000 of Compensation (or such lesser amount as elected by the Employer in the Adoption Agreement) for the SIMPLE 401(k) Year. Effective for taxable years beginning after December 31, 2023, if the Employer had more than 25 Employees who received at least $5,000 of Compensation from the Employer for the preceding year and the Employer so elected in the Adoption Agreement Termination Amendment, the Employer will increase the nonelective contribution described in the prior sentence to three percent of Compensation for the full SIMPLE 401(k) Year.

The Basic Plan Document section entitled* Safe Harbor CODA *is modified by replacing the first sentence of Section 3.03(C) that was updated by SECURE with the following:

An Adopting Employer who has elected the Safe Harbor CODA provisions will provide each Eligible Employee with a comprehensive notice of the Employee's rights and obligations under the Plan, written in a manner calculated to be understood by the average Eligible Employee. The foregoing requirement shall not apply to an Adopting Employer who has elected the Safe Harbor Nonelective Contribution option without having elected the ACP Test Safe Harbor Matching Contribution option in the Adoption Agreement.

The Basic Plan Document section entitled* Safe Harbor CODA *is modified by inserting the following prior to the last sentence of the first paragraph of Section 3.03(C) that was updated by SECURE:

This notice requirement shall not apply to any Participant, who is not currently a Contributing Participant and who has received a summary plan description, all initial notices required by the Code, ERISA and related guidance, and the annual reminder notice described in Code section 414(bb) and guidance provided thereunder.

The Basic Plan Document section entitled* Employer Contributions *is modified by inserting the following as the second paragraph of Section 3.04(B)(1):

Effective for taxable years beginning after December 31, 2023, an Eligible Employer for SIMPLE 401(k) Plan that has established a SIMPLE 401(k) Plan may elect to contribute a nonelective contribution of up to 10% of Compensation for the full SIMPLE 401(k) Year, but not to exceed $5,000 for each Eligible Employee who received at least $5,000 of Compensation from the Employer for the year. Effective for tax years beginning after December 31, 2024, the $5,000 limit amount shall be adjusted by the Secretary of the Treasury, in multiples of $100, under Code section 408(p)(2)(G).

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The Basic Plan Document section entitled* Employer Contributions *is modified by adding the following as Section 3.04(E)(8):
Effective for Plan Years beginning after December 31, 2023, the provision in (1) above is not required to apply to any Employee not meeting the age or service requirements of Code section 410(a)(1) (without regard to the rules found in Code section 410(a)(1)(B)).

The Basic Plan Document section entitled* Rollover Contributions *is modified by adding the following to the end of Section 3.07 that was previously updated by CARES:
Notwithstanding the foregoing, a Participant may repay any Qualified Birth or Adoption Distribution at any time during the 3-year period beginning on the day after the date on which such distribution was received, except that such distributions made prior to December 29, 2022, may be repaid at any time prior to January 1, 2026.

A Participant who receives a domestic abuse distribution as described in Plan Section 5.01(D)(9), an emergency personal expense distribution as described in Plan Section 5.01(D)(10), a federally declared disaster distribution as described in Plan Section 5.01(D)(4), or a terminal illness distribution as described in Plan Section 5.01(D)(8) from the Plan may, in accordance with the Plan's existing rollover contribution elections and pursuant to rules promulgated by the IRS, make one or more repayments to the Plan in an aggregate amount not to exceed the amount of such distribution at any time during the 3-year period beginning the day after the date on which such distribution was received. In addition, if elected in the Adoption Agreement Termination Amendment, a Participant who receives one of the distributions described in the preceding sentence that is taken from a source other than the Plan may, pursuant to rules promulgated by the IRS, make one or more repayments to the Plan in an aggregate amount not to exceed the amount of such distribution. Such distribution repayments will be permitted only if the applicable distribution was taken from the same sources the Adopting Employer elected for Direct Rollovers in Adoption Agreement Section Three. For purposes of any repayments to the Plan under this Plan Section 3.07, the Participant will be treated as having received any such distribution described in this paragraph in an eligible rollover distribution (as defined in Code section 402(c)(4)) and as having contributed the amount to the Eligible Retirement Plan within 60 days of the distribution.

A Participant may also roll over to the Plan the amount of a hardship withdrawal made from the Plan pursuant to Plan Section 5.01(C)(2) for the purchase or construction of a principal residence in a qualified disaster area which was received no more than 180 days prior to the first day of the incident period for a qualifying disaster described in Plan Section 5.01(D)(4) and not later than 30 days after the last day of such incident period, but which was not so used on account of the qualified disaster with respect to such area.

Notwithstanding anything in this Plan to the contrary, if the Employer has elected in the Adoption Agreement Termination Amendment to permit Designated Roth Contributions and Section Three of the Adoption Agreement permits rollover contributions of Roth Elective Deferrals, the Plan will also accept rollover contributions of Designated Roth Contributions from the same sources that rollover contributions of Roth Elective Deferrals are permitted.

The Basic Plan Document section entitled* Actual Deferral Percentage Test (ADP) *is modified by adding the following as Section 3.13(B)(11):
Effective for Plan Years beginning after December 31, 2023, for purposes of determining whether the Plan satisfies the ADP test, the Employer may elect to disaggregate the Plan into two separate plans and have the ADP test performed separately for (a) all eligible Participants who received any Matching Contributions based upon Qualified Student Loan Payments and (b) all eligible Participants who received no Matching Contributions based upon Qualified Student Loan Payments.

The Basic Plan Document section entitled* Deemed IRAs *is modified by adding the following to the third paragraph of Section 3.15(A)(8), as added by SECURE:
Notwithstanding the preceding, effective for distributions required to be made after December 31, 2022, reference to the calendar year in which the IRA Owner would have attained age 72 shall be effectively changed to the calendar year in which the IRA Owner would have attained age 73.

The Basic Plan Document section entitled* Deemed IRAs *is modified by adding the following to the end of Section 3.15(B)(1)(a)(ii):
Effective for taxable years beginning after December 31, 2023, the limit shall be adjusted by the Secretary of the Treasury, in multiples of $100, under Code section 219(b)(5)(C)(iii).

The Basic Plan Document section entitled* Deemed IRAs *is modified by adding the following to the end of Section 3.15(B)(2)(a)(ii):
Effective for taxable years beginning after December 31, 2023, the limit shall be adjusted by the Secretary of the Treasury, in multiples of $100, under Code section 219(b)(5)(C)(iii).

The Basic Plan Document section entitled* Deemed IRAs *is modified by adding the following as a new paragraph at the end of Section 3.15(B):
Notwithstanding the preceding, effective for distributions required to be made after December 31, 2022, any reference made to the calendar year in which the IRA Owner would have attained age 72 shall be effectively changed to the calendar year in which the IRA Owner would have attained age 73.

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The Basic Plan Document section entitled* Contributions *is modified by replacing Section 3.17(A), as added by SECURE, with the following:

Nondiscrimination Rules – Notwithstanding Code section 401(a)(4), the Employer will not be required to make nonelective contributions or Matching Contributions on behalf of Long-Term, Part-Time Employees even if such contributions are made on behalf of other Employees eligible to participate in the Plan. In addition, the Employer may exclude Long-Term, Part-Time Employees from application of Code sections 401(a)(4), 401(k)(3), 401(k)(12), 401(k)(13), 401(m)(2), 401(m)(11), 401(m)(12) and 410(b). However, if the Employer has elected to apply the Safe Harbor CODA provisions to this Plan and Long-Term, Part-Time Employees are eligible to become a Participant in the Plan for purposes of receiving Safe Harbor Contributions, then such individuals will only be excluded from the application of Code sections 401(a)(4), 401(m)(2), and 410(b) if elected in the Adoption Agreement Termination Amendment.

The Basic Plan Document section entitled* Contributions *is modified by adding the following as Section 3.19:

Pension-Linked Emergency Savings Account (PLESA)

If elected in the Adoption Agreement Termination Amendment, the Plan will include a PLESA.

A. **Separate Account** – The PLESA shall be operated as a separate, short-term savings account within the Plan and contributions to such account shall be treated as Roth Deferrals. No other types of contributions are permitted in the PLESA.

B. **Eligible Participant** – Participants permitted to contribute to the PLESA shall be those Employees who are Eligible Participants and who are not Highly Compensated Employees. Any Participant who has made contributions to the PLESA and thereafter becomes a Highly Compensated Employee may not make further contributions to the PLESA but still retains withdrawal rights described in Section 5.01(D)(11).

C. **Maximum Amount and Excesses** – No Participant contributing to the PLESA shall be permitted to make contributions that cause the portion of the PLESA account balance attributable to Participant contributions (not including earnings) to exceed $2,500. The $2,500 limit shall be adjusted by the Secretary of the Treasury, in multiples of $100, under Code section 415(d). Any contribution which would exceed such amount will be deemed to increase the Participant's Roth Deferral election under the Plan by the same percentage as the excess PLESA contribution and, in the absence of any such Roth Deferral election, such contribution will be returned to the Participant. Any Excess Elective Deferrals of the Participant for the year shall be distributed first from PLESA contributions before any other type of Elective Deferral.

D. **Automatic Contribution Arrangement** – If the Employer has elected in the Adoption Agreement to provide an ACA or EACA for Roth Elective Deferrals that does not exceed 3 percent (including any future increases in deferral rate), then such Roth Elective Deferrals will be made to the PLESA account unless the Participant elects out of the ACA or EACA or the maximum amount has been contributed to the PLESA. The Employer may amend the deferral rate of an ACA provision contributing to the PLESA account no more than once annually.

E. **Investment and Disclosures** – The PLESA account shall be invested in accordance with ERISA section 801(c). Disclosures regarding the contributions to the PLESA, its investment, and other information required by ERISA section 801(d)(3) shall be provided to Eligible Employees not less than 30 days and not more than 90 days prior to the date of the first contribution to the PLESA (or any change to the rate of Participant Compensation withheld under an ACA or EACA for contribution to the PLESA) and not less than annually thereafter.

F. **Matching Contributions** – Any Participant eligible to receive Matching Contributions shall be entitled to receive match on PLESA contributions at the same rate as any other contributions for which the Participant would receive Matching Contributions, subject to the following limitations: (1) Matching Contributions shall be allocated to all other contributions prior to any allocation to PLESA contributions; and, (2) Matching Contributions that are made on account of PLESA contributions may not cause such account to exceed the maximum account balance described in Section 3.19(C) above.

G. **Terminating the PLESA** – The Employer may amend the Plan at any time to cease to offer PLESA contributions. Upon ceasing to offer PLESA contributions, amounts within a Participant PLESA account will be distributed in accordance with Section 5.01(D)(11).

SECTION FOUR: VESTING AND FORFEITURES

The Basic Plan Document section entitled* 100 Percent Vesting of Certain Contributions *is modified replacing Section 4.02 with the following:

The Participant's accrued benefit derived from Elective Deferrals, Designated Roth Contributions, Qualified Nonelective Contributions, ADP Test Safe Harbor Contributions, Nondeductible Employee Contributions, and Qualified Matching Contributions is nonforfeitable. Additionally, Employer Contributions contributed or allocated on behalf of a Military Spouse will be nonforfeitable at all times. Separate accounts for Pre-Tax Elective Deferrals, Roth Elective Deferrals, Qualified Nonelective Contributions, Nondeductible Employee Contributions, Matching Contributions, and Qualified Matching Contributions will be maintained for each Participant. Each account will be credited with the applicable contributions and earnings thereon.

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SECTION FIVE: DISTRIBUTIONS AND LOANS TO PARTICIPANTS

The Basic Plan Document section entitled* Distributions *is modified by adding the following as the next alphabetically ordered item in Section 5.01(A)(2), as updated by SECURE and CARES:
if elected in the Adoption Agreement Termination Amendment, an emergency personal expense distribution in accordance with Plan Section 5.01(D)(10);

The Basic Plan Document section entitled* Distributions *is modified by adding the following as the next alphabetically ordered item in Section 5.01(A)(2), as updated by SECURE and CARES:
if elected in the Adoption Agreement Termination Amendment, a domestic abuse distribution in accordance with Plan Section 5.01(D)(9); or

The Basic Plan Document section entitled* Distributions *is modified by adding the following as the next alphabetically ordered item in Section 5.01(A)(2), as updated by SECURE and CARES:
if elected in the Adoption Agreement Termination Amendment, a Pension-Linked Emergency Savings Account (PLESA) distribution in accordance with Plan Section 5.01(D)(11).

The Basic Plan Document section entitled* Distributions *is modified by adding the following paragraph to the end of Section 5.01(C)(2)(a), as updated by BBA:
Effective for Plan Years beginning after December 29, 2022, except as may be provided for in regulations promulgated by the Secretary of the Treasury, the Administrator may rely upon a certification from the Employee that the hardship is on account of an immediate and heavy financial need, that the amount requested is not in excess of the amount required to satisfy such financial need, and that the Employee has insufficient cash or other liquid assets available to satisfy such financial need.

The Basic Plan Document section entitled* Distributions *is modified by replacing Section 5.01(D)(4) with the following:
Federally Declared Disaster Distribution – If elected in the Adoption Agreement Termination Amendment, Participants may take a distribution due to being affected by a federally declared disaster. If the Participant's principal place of abode at any time during the period covered by the Federal Emergency Management Agency's declaration is located within the disaster area described in such declaration and the Participant sustained economic loss by reason of such disaster, the Participant may request a distribution on or after the declaration's date and before the date that is 180 days after the date the disaster was declared. The aggregate amount that may be distributed with regard to any qualified disaster is $22,000 from all plans maintained by the Employer, including all plans maintained by Related Employers.

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(D)(8):
Terminal Illness Distribution – If elected in the Adoption Agreement Termination Amendment, Participants in a profit sharing plan may take a distribution of Matching Contributions, which are not ACP Test Safe Harbor Matching Contributions, QACA ACP Test Safe Harbor Matching Contributions, QACA ADP Test Safe Harbor Matching Contributions, or Qualified Matching Contributions, and Employer Profit Sharing Contributions from the Plan on or after the date on which the Participant has been certified by a physician as being a terminally ill individual as described in Code section 72(t)(2)(L)(ii). If elected in the Adoption Agreement Termination Amendment, Participants in a money purchase pension plan may take a distribution of Matching Contributions, which are not Qualified Matching Contributions, and Employer Money Purchase Pension Contributions from the Plan on or after the date on which the Participant has been certified by a physician as being a terminally ill individual as described in Code section 72(t)(2)(L)(ii). The Participant must provide the Plan Administrator with sufficient evidence of the terminally ill condition in accordance with guidance provided by the IRS or Secretary of the Treasury.

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(D)(9):
Domestic Abuse Distribution – If elected in the Adoption Agreement Termination Amendment, Participants may take a distribution within one year of any date on which the Participant is the victim of domestic abuse as defined in Code section 72(t)(2)(K) by a spouse or domestic partner. The Administrator may rely upon the Participant's certification that the conditions for a domestic abuse distribution have been met. The aggregate amount of such distributions from all plans maintained by the Employer, including all plans maintained by Related Employers, to such individual with respect to domestic abuse may not exceed $10,000 or 50 percent of the Participant's Vested Account Balance. The $10,000 limit shall be adjusted by the Secretary of the Treasury, in multiples of $100, in accordance with Code section 72(t)(2)(K)(vii) for taxable years after 2024. Unless otherwise permitted by law or regulatory guidance, domestic abuse distributions may not be permitted if the Plan is subject to the Joint and Survivor Annuity Requirements of Plan Section 5.10.

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(D)(10):
Emergency Personal Expense Distribution – If elected in the Adoption Agreement Termination Amendment, Participants may take one distribution per calendar year for up to the lesser of $1,000 or the Participant's Vested Account Balance over $1,000. Such distribution shall only be taken for the purpose of meeting unforeseeable or immediate financial needs relating to necessary personal or family emergency expenses. Except as may be provided for in regulations promulgated by the Secretary of the Treasury, the Administrator may rely upon the Participant's certification that the conditions for the emergency personal expense distribution have been met. If a Participant receives an emergency personal expense distribution from the Plan, the Participant may not receive a subsequent emergency personal expense distribution from the Plan during the next three calendar years unless such previous distribution is repaid to the Plan

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pursuant to Plan Section 3.07 or the Participant makes a total amount of Elective Deferrals and/or Nondeductible Employee Contributions to the Plan that equals or exceeds the amount of the previous distribution. Unless otherwise permitted by law or regulatory guidance, an emergency personal expense distribution shall be taken only from Elective Deferrals.

The Basic Plan Document section entitled* Distributions *is modified by adding the following as Section 5.01(D)(11):
Pension-Linked Emergency Savings Account (PLESA) – The Participant may receive a distribution of all or a part of their PLESA at least once per calendar month. The Plan Administrator will direct the Trustee (or Custodian, if applicable) to commence such distribution as soon as administratively feasible after the request is received in accordance with the procedures established by the Administrator. Any such withdrawal shall not be treated as an Eligible Rollover Distribution. Notwithstanding the foregoing, following the Participant's Termination of Employment or the Employer's termination of the PLESA provision, the Participant may choose to receive any amount remaining in the PLESA or transfer such amount to a Roth Elective Deferral account for the Participant within a reasonable time of such termination.

The Basic Plan Document section entitled* Form of Distribution to Beneficiaries *is modified by adding the following to the end of the final paragraph of Section 5.04:
Effective for distributions made after December 31, 2023, "$5,000" in the above subsections shall be replaced with "$7,000" each time it occurs.

The Basic Plan Document section entitled* Required Minimum Distribution Requirements *is modified by adding the following to the end of Section 5.05(A)(2):
Effective December 29, 2022, the amount required to be distributed pursuant to this Section may be reduced by the amount distributed by any annuity contracts from which payments are made in accordance with Treasury regulation section 1.401(a)(9)-6.

The Basic Plan Document section entitled* Required Minimum Distribution Requirements *is modified by adding the following to the end of Section 5.05(D)(1)(a)(ii):
Effective for tax years beginning after December 31, 2023, if the Participant's Spouse is the sole surviving beneficiary of the Participant, the surviving Spouse may elect to apply Section 5.05(C) of the Plan as if the surviving Spouse were the Participant. However, the period for such distributions will begin in the year following the year of death of the Participant.

The Basic Plan Document section entitled* Required Minimum Distribution Requirements *is modified by adding the following to the end of Section 5.05(D)(2)(a)(i):
Effective for tax years beginning after December 31, 2023, if the Participant's Spouse is the sole surviving beneficiary of the Participant, the surviving Spouse may elect to apply Section 5.05(C) of the Plan as if the surviving Spouse were the Participant.

The Basic Plan Document section entitled* Required Minimum Distribution Requirements *is modified by adding the following to the end of the third paragraph of Section 5.05(D)(2)(c), as previously updated by SECURE:
Notwithstanding the preceding, effective for distributions required to be made after December 31, 2022, reference to the calendar year in which the Participant would have attained age 72 shall be effectively changed to the calendar year in which the Participant would have attained age 73.

The Basic Plan Document section entitled* Loans to Participants *is modified by adding the following to the end of Section 5.16(E):
Effective for loans secured after December 31, 2023, spousal consent is not required if the Plan or the Participant is not subject to Code section 401(a)(11) at the time the Individual Account is used as security, or if the total Individual Account subject to the security is less than or equal to $7,000.

The Basic Plan Document section entitled* Loans to Participants *is modified by adding the following after paragraph three of Section 5.16:
For a Plan that otherwise allows for loans, if elected in the Adoption Agreement Termination Amendment, Participants who would qualify for a federally declared disaster distribution pursuant to Section 5.01(D)(4) shall be permitted to take a loan from the Plan during the period of time that the Participant would qualify for such disaster distribution with the terms of such loan being as permitted in this paragraph. The maximum amount of the loan such a Participant may take shall be calculated by using "$100,000" instead of "$50,000" and "100 percent" instead of "50 percent" in the above paragraph. If payments are due for the loan prior to 180 days after the last day of the incident period for such disaster, all loan payments may be delayed for up to 1 year and the period of such delay will not be counted toward the 5-year period described in the paragraph above. All such delayed loan payments will accrue interest.

SECTION SEVEN: MISCELLANEOUS

The Basic Plan Document section entitled* Plan Amendments *is modified by adding the following to the end of Section 7.06(B):
Notwithstanding anything in this Plan to the contrary, for Plan Years beginning on or after January 1, 2024, a Plan amendment that increases benefits, other than Matching Contributions, may be effective as of any date during the Plan Year immediately preceding the Plan Year in which the amendment is executed. However, any such amendment must be executed no later than the due date for the filing of the Adopting Employer's income tax return, including any extensions thereof, for the taxable year in which the amendment is effective.

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The Basic Plan Document section entitled* Correction *is modified by replacing the last two sentences of the first paragraph of Section 7.11 with the following:
EPCRS is currently described in Revenue Procedure 2021-30. To the extent that a correction permits repayment to the Plan of any overpayment of all or a portion of a Participant's Individual Account, the Employer or Plan Administrator may take action to recover such amounts from the respective Participants or Beneficiaries. Notwithstanding the preceding, if the Plan is subject to ERISA, any inadvertent overpayment of all or a portion of an Individual Account previously made to a Participant may not be recovered from their Beneficiary (including a Spouse, former Spouse, or other Beneficiary). The Plan will not fail to be treated as satisfying the qualification requirements of Code section 401(a) because: (1) the Plan fails to obtain payment from any Participant, Beneficiary, Adopting Employer, Employer, Fiduciary, or other party on account of any inadvertent overpayment of all or a portion of an Individual Account made by the Plan, or (2) the Adopting Employer amends the Plan to increase past, or decrease future, Individual Account payments to affected Participants and Beneficiaries in order to adjust for prior inadvertent overpayments.

The Basic Plan Document section entitled* Investment Authority *is modified by adding the following as Section 7.22(G)(2):
Effective for any QLAC purchased or received in an exchange on or after December 29, 2022, excess premiums as described in Plan Section 7.22(G)(1)(a) shall be calculated as follows:

(a) The amount of the premiums paid for the QLAC under the Plan will not exceed the lesser of:
  (i) an amount equal to the excess of $200,000 (as adjusted by the Commissioner) over the sum of
    (A) the premiums paid before that date with respect to the contract, and
    (B) premiums paid on or before that date with respect to any other contract that is intended to be a QLAC and that is purchased for the Participant under the Plan, or any other plan, annuity, or account described in Code section 401(a), 403(a), 403(b), or 408 or eligible governmental plan under Code section 457(b); or
  (ii) an amount equal to the excess of the sum of premiums paid before that date with respect to the contract and premiums paid on or before that date with respect to any other contract that is intended to be a QLAC and that is held or was purchased for the Participant under the Plan.

PART FIVE: PROPOSED 401 REGULATIONS

The following is adopted to reflect the proposed regulations published by the Department of the Treasury on February 27, 2023, governing the use of forfeitures under qualified plans pursuant to Internal Revenue Code section 401. This is intended to provide good faith compliance with the requirements of proposed Treasury Regulation section 1.401-7. Except as otherwise provided in the Adoption Agreement Termination Amendment or indicated below, these provisions are effective February 27, 2023.

The Basic Plan Document section entitled* Employer Contributions *is modified by adding the following to the end of the last paragraph of Section 3.04(C):
For purposes of timely applying Forfeitures in accordance with this Plan Section 3.04(C), Forfeitures which arose in Plan Years beginning before January 1, 2024, will be treated as having arisen in the Plan Year beginning on or after January 1, 2024.

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Summary of Material Modifications

Name of Plan _____

Name of Adopting Employer _____

Plan Sequence Number _____ Plan Year End _____

The purpose of this document is to update your Summary Plan Description (SPD). This document is very important and should be kept with your SPD. The following update to your SPD is limited to changes to certain provisions of the SPD. To the extent that any provisions of this Summary of Material Modifications (SMM) conflict with your SPD, the terms of this SMM will apply. The following sections of your SPD are amended to read as follows:

BIPARTISAN BUDGET ACT

☐ **Not applicable. The Plan has already been amended for the Bipartisan Budget Act (BBA). Please see your current SPD or prior SMM for more information.**

DISTRIBUTIONS AND LOANS

Can I withdraw money from the Plan while I am still employed?

Hardship Distributions of Deferrals

If you are permitted to take a distribution from Pre-tax Deferrals and/or Roth Deferrals due to a financial hardship, such distribution will include any earnings on the respective contributions.

Hardship Distributions of QNECs, QMACs, and Safe Harbor Contributions

☑ Yes. ☐ No.

If "Yes" is selected and you have a financial hardship, you may take a distribution from Qualified Nonelective Contributions, Qualified Matching Contributions, ADP safe harbor contributions, or QACA ADP safe harbor employer contributions, including any earnings on the respective contributions.

This provision is effective 01/01/2019.

The types of expenses that qualify for a hardship distribution include medical expenses for you, your spouse, or your dependents; the purchase of your principal residence (excluding mortgage payments); tuition and education-related expenses for you, your spouse, your children, or your dependents; payments to prevent eviction from your principal residence; funeral expenses for your parent, your spouse, your child, or your dependents; payments to repair your principal residence that qualify for a casualty loss deduction (without regard to any limits on the amount of a casualty loss deduction); and expenses and losses (including loss of income) that you incurred as a result of a disaster declared by the Federal Emergency Management Agency because your principal residence or principal place of employment was located in the area at the time of the disaster. The Plan Administrator may modify the list of events that qualify for a hardship distribution when Profit Sharing Contributions and/or Matching Contributions are being used to satisfy your hardship request.

Before you take a hardship distribution, you must take all other distributions, ☐ including ☑ not including all nontaxable loans available to you under the Plan and all other plans maintained by the Employer.

In addition, you will be required to satisfy the following additional condition(s) before you take a hardship distribution:

_____

_____.

This provision is effective 01/01/2019.

If you took a hardship distribution from the following types of contributions on or after the effect date listed below and prior to the Plan Year beginning on or after January 1, 2020, you ☑ were ☐ were not be eligible to make Deferrals (and Nondeductible Employee Contributions, if applicable) for the next six months.

☑ Elective Deferrals ☑ Matching Contributions ☑ Profit Sharing Contributions

This provision is effective 01/01/2019.

In addition, any existing six-month restriction that applied from being eligible to make Deferrals (and Nondeductible Employee Contributions, if applicable) following the hardship distribution ☐ will ☑ will not continue to apply.

This provision is effective 01/01/2019.

If you take a hardship distribution during the Plan Year beginning on or after January 1, 2020, you will be eligible to make Deferrals (and Nondeductible Employee Contributions, if applicable) immediately following the hardship distribution.

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SETTING EVERY COMMUNITY UP FOR RETIREMENT ENHANCEMENT ACT

☐ **Not applicable. The Plan has already been amended for the Setting Every Community Up for Retirement Enhancement Act (SECURE). Please see your current SPD or prior SMM for more information.**

ELIGIBILITY

Are there age and service requirements that I have to meet before I am eligible to participate in the Plan?

For purposes of determining your eligibility to participate in the Plan for Deferrals on or after the first day of the Plan's 2021 Plan Year, if you do not satisfy the Plan's eligibility service requirements during any eligibility measuring period, you will still satisfy the eligibility service requirements if you complete one year of eligibility service, or, if earlier, you work three consecutive 12-month periods, during each of which you work at least 500 hours. However, no 12-month period that begins before January 1, 2021, will be included for purposes of the three consecutive 12-month period determination and you must attain age 21 by the end of the three consecutive 12-month period.

☐ In addition to Deferrals, for purposes of the contributions listed below, if you do not satisfy the Plan's eligibility service requirements during any eligibility measuring period, you will still satisfy the eligibility service requirements if you work three consecutive 12-month periods beginning on your date of hire, during each of which you work at least 500 hours. However, no 12-month periods that begin before January 1, 2021, will be included for purposes of the three consecutive 12-month period determination and you must attain age 21 by the end of the three consecutive 12-month period:

- ☐ Matching Contributions
- ☐ Profit Sharing Contributions
- ☐ Safe Harbor/QACA Contributions
- ☐ Qualified Nonelective Contributions

This provision is effective _____.

CONTRIBUTIONS

If I am automatically enrolled, how much will be contributed on my behalf and will the amount of the contributions change?

QACA

☑ If the QACA feature of the Plan applies as indicated in your SPD, and your Employer has elected to increase the cap on the portion of your Compensation that will be automatically contributed from each paycheck to the Plan to more than 10%, the QACA rate schedule for the Plan is:

Initial Rate	3%
Rate Two	4%
Rate Three	5%
Rate Four	6%
Rate Five	_____%
Rate Six	_____%
Rate Seven	_____%
Rate Eight	_____%
Rate Nine	_____%
Rate Ten	_____%
Rate Eleven	_____%
Rate Twelve	_____%
Rate Thirteen	_____%

This provision is effective 01/01/2020.

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If I take a distribution from this Plan or another eligible employer plan, can I combine it with my money in this Plan?

Rollover of Lifetime Income Investment Distributions

☐ If you take a Lifetime Income Investment Distribution from another retirement arrangement, you will be able to roll over such distribution to your Plan if the distribution was taken from one of the permissible types of plans indicated in the Plan's rollover rules previously provided to you in the SPD. The Plan's rules regarding rollover contributions apply to the rollover of such Lifetime Income Investment Distributions.

Repayment of Qualified Birth or Adoption Distributions

If you take a Qualified Birth or Adoption Distribution from your Plan, you will be able to repay such distribution to your Plan or an eligible retirement plan to which such repayment contributions can be made. The Plan's rules regarding rollover contributions apply to the repayment of such Qualified Birth or Adoption Distributions. The rollover contribution rules are listed in the SPD previously provided to you.

☑ If you take a Qualified Birth or Adoption Distribution from another retirement arrangement, you will be able to repay such distribution to your Plan if the distribution was taken from one of the types of plans for which the Plan will accept direct rollovers. The Plan's rules regarding rollover contributions apply to the repayment of such Qualified Birth or Adoption Distributions.

This provision is effective _____.

Are there any limits on how much can be contributed for me?

If you receive Difficulty of Care Payments, such amounts will be included in your Compensation for Plan purposes and may increase the total amount of contributions that may be allocated to the Plan for your benefit each year as described in the SPD previously provided to you.

If I receive Difficulty of Care Payments, will I be able to make contributions to the Plan or receive Employer contributions based upon such amounts?

You may make contributions to, or receive allocations under, the Plan based upon any amounts that you receive as Difficulty of Care Payments. Your contributions to the Plan that are based upon your Difficulty of Care Payments will be treated as Nondeductible Employee Contributions to the Plan, which are described in the SPD previously provided to you. Contact your Plan Administrator for more information about the applicable contribution procedures if you receive Difficulty of Care Payments.

VESTING AND FORFEITURES

Will I be able to keep my Employer contributions if I terminate employment or am no longer eligible to participate in the Plan?

Year of Vesting Service

If you satisfied the age and service requirements to be eligible for Deferrals by working at least 500 hours for three consecutive 12-month periods and attaining age 21 by the end of the three consecutive 12-month period, you will be credited with a year of vesting service for each vesting period during which you are credited with at least 500 hours for purposes of determining your vested percentage on Employer contributions (if applicable).

DISTRIBUTIONS AND LOANS

Will I ever be required to take my money out of the Plan?

Required Minimum Distributions

You will be required to begin taking required minimum distributions (RMDs) upon your Required Beginning Date. These distributions will generally be required to start when you attain age 72 (age 70½ if you were born before July 1, 1949). The Plan's Required Beginning Date is found in the DEFINITIONS section of this SMM.

Can I withdraw money from the Plan while I am still employed?

Qualified Birth or Adoption Distributions

☐ You may take a Qualified Birth or Adoption Distribution of up to $5,000 from the following contribution types within the one-year period beginning on the date your child is born or the date the adoption of your Eligible Adoptee is finalized. Contact your Plan Administrator for more information or if you have questions.

- ☐ Deferrals
- ☐ Matching Contributions
- ☐ Profit Sharing Contributions

This provision is effective _____.

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Lifetime Income Investments
If your Plan offers Lifetime Income Investments, you may directly roll over any portion of your account that is invested in such Lifetime Income Investment (subject to certain restrictions) if your Employer removes this as an investment option under the Plan on or after the first day of the Plan's 2020 Plan Year. If you choose to remove any portion of your account that is invested in the Lifetime Income Investment, such distribution must be taken within the 90-day period before the date the Lifetime Income Investment is no longer permitted to be held under the Plan and such distribution must be paid directly to another eligible retirement arrangement. Contact your Plan Administrator for the documentation and procedures that apply to direct rollovers of Lifetime Income Investments.

What if I die before receiving all of my money from the Plan?

If You Die On or After January 1, 2020
If you die on or after January 1, 2020, your beneficiary will generally be required to take your entire balance by the end of the year in which the tenth anniversary of your death occurs. This is true regardless of whether you die before, on, or after your Required Beginning Date.

However, if you die before your Required Beginning Date and your beneficiary is 1) your spouse, 2) your minor child, 3) disabled, 4) a chronically ill individual, 5) an individual who is not described in this list but who is not more than 10 years younger than you, or 6) any other individual as determined by the IRS, then your beneficiary has the option of (1) taking annual payments beginning the year following your death (or the year you would have reached age 72, if your spouse is your beneficiary), or (2) delaying their distribution until the year containing the tenth anniversary of your death, provided they take the entire amount remaining during that tenth year.

If you die after your Required Beginning Date, and your beneficiary is one of the individuals listed in items 1 through 6 above, your beneficiary will have the option of (1) taking annual payments beginning the year following your death typically over the beneficiary's remaining life expectancy, or (2) taking annual payments beginning the year following your death over the next ten years provided they take the entire amount remaining during that tenth year.

Please see your Plan Administrator for further information about beneficiary options.

Can I take a loan from the Plan?
If the Plan allows you to take a loan from your account, beginning on or after December 21, 2019, no loans will be issued through credit cards or other similar arrangements.

DEFINITIONS

Compensation – On or after the first day of the Plan's 2016 Plan Year, amounts you receive as Difficulty of Care Payments will be included in the definition of Compensation for the Plan that is described in the SPD that was previously provided to you.

Difficulty of Care Payments – Difficulty of Care Payments are amounts you receive from your Employer as qualified foster care payments and that are excluded from your gross income for a taxable year.

Eligible Adoptee – Any individual (other than your spouse's child) who has not attained age 18 or is physically or mentally incapable of self-support.

Lifetime Income Investment – A Lifetime Income Investment is an investment option that provides you with election rights 1) which are not available with respect to other investment options under the Plan, and 2) which are to a lifetime income feature available through a contract or other arrangement offered under the Plan. A "lifetime income feature" is 1) a feature which guarantees a minimum level of income annually (or more frequently) for at least the remainder of your life or the joint lives of you and your designated beneficiary, or 2) an annuity that is payable in substantially equal periodic payments (at least annually) over your life or the joint lives of you and your designated beneficiary.

Qualified Birth or Adoption Distribution – Any distribution to you that is made during the one-year period beginning on the date on which your child is born, or the date the legal adoption of your Eligible Adoptee is finalized.

Required Beginning Date – When you reach age 72 (age 70½ if you were born before July 1, 1949), you will generally need to begin taking a portion of your balance out of the Plan each year. This distribution is called a required minimum distribution, or RMD. If you continue to work for your Employer after age 72 (age 70½ if you were born before July 1, 1949), you may, as permitted by the Plan, delay required distributions until you actually stop working for your Employer unless you own more than 5% of the Employer. If you own more than 5% of the Employer, you will need to begin taking payments at age 72 (age 70½ if you were born before July 1, 1949) even if you are still employed. The annual required distribution amount is generally based on your account balance divided by a life expectancy factor outlined in retirement plan regulations.

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CORONAVIRUS AID, RELIEF, AND ECONOMIC SECURITY ACT

☐ **Not applicable. The Plan has already been amended for the Coronavirus Aid, Relief, and Economic Security Act (CARES). Please see your current SPD or prior SMM for more information.**

CONTRIBUTIONS

If I take a distribution from this Plan or another eligible employer plan, can I combine it with my money in this Plan?

Repayment of Coronavirus-Related Distributions

If you took a distribution from your Plan due to being affected by the virus SARS-CoV-2 or by the coronavirus disease 2019 (hereinafter "COVID-19"), you will be able to repay such distribution to your Plan or an eligible retirement plan to which such repayment contributions can be made. The Plan's rules regarding rollover contributions apply to the repayment of such coronavirus-related distributions.

☑ If you took a distribution from another retirement arrangement due to being affected by COVID-19, you will be able to repay such distribution to your Plan if the distribution was taken from one of the types of plans for which the Plan will accept direct rollovers. The Plan's rules regarding rollover contributions apply to the repayment of such coronavirus-related distributions.

This provision is effective 01/01/2020.

DISTRIBUTIONS AND LOANS

Will I ever be required to take my money out of the Plan?

Required Minimum Distributions

You will be required to begin taking required minimum distributions (RMDs) upon your Required Beginning Date. These distributions will generally be required to start when you attain age 72 (age 70½ if you were born before July 1, 1949). The Plan's Required Beginning Date is found in the DEFINITIONS section of this SMM.

2020 Required Minimum Distributions

Unless otherwise indicated below, your Employer allowed you to choose whether to take your 2020 Required Distribution or Extended 2020 RMD. This applied if you were a Participant age 70½ or older, or if you were a beneficiary, and you would have ordinarily been required to receive a distribution for 2020 or for 2019 payable in 2020.

☐ Your Employer did not allow you to choose whether to take your 2020 Required Distribution or Extended 2020 RMD.

If you could not or did not choose whether to take your 2020 Required Distribution or Extended 2020 RMD, your Employer retained such amount within the Plan, unless otherwise indicated below.

☐ If you could not or did not choose whether to take your 2020 Required Distribution or Extended 2020 RMD, your Employer distributed such amount from the Plan.

Can I withdraw money from the Plan while I am still employed?

Coronavirus-Related Distributions

☑ If you were affected by COVID-19, you were allowed to take distributions and repay them to an eligible retirement plan to which rollover contributions can be made. See the information below for additional details and contact your Plan Administrator if you have questions.

This provision is effective _____.

You were allowed to take distributions beginning on January 1, 2020, and ending on December 30, 2020. To take a coronavirus-related distribution, you must have been a Qualified Individual.

If you were a Qualified Individual, you could have generally designated any distribution (including periodic payments and 2020 required minimum distributions) from your Plan as a coronavirus-related distribution.

The total of your coronavirus-related distributions from all plans was limited to $100,000.

A reduction or offset of your account balance in your Plan, on or after January 1, 2020, and ending on December 30, 2020, in order to repay a loan could also have been designated as a coronavirus-related distribution.

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Can I take a loan from the Plan because I was affected by COVID-19?

Coronavirus-Related Loans

Unless otherwise indicated below, if you were permitted to take a loan(s) from your account under the Plan, you could have taken a loan(s) due to the fact that you were affected by COVID-19, as provided in the CARES Act and related pronouncements. See your SPD for other applicable loan terms. However, unless otherwise indicated below, if you were not otherwise permitted to take a loan(s) from your account under the Plan, you were not permitted to take a loan(s) due to the fact that you were affected by COVID-19.

☐ Even if you were otherwise permitted to take a loan(s) from your account under the Plan, you could not have taken a loan(s) due to the fact that you were affected by COVID-19, as provided in the CARES Act and related pronouncements.

☑ Even if you were not otherwise permitted to take a loan(s) from your account under the Plan, you were permitted to take a loan(s) due to the fact that you were affected by COVID-19, as provided in the CARES Act and related pronouncements. See your Plan Administrator for information on taking a loan from the Plan.

This provision is effective _____.

If you could have taken a loan(s) due to the fact that you were affected by COVID-19, you were allowed to take a loan(s) from the Plan beginning on March 27, 2020, and ending on September 22, 2020, if you were a Qualified Individual.

Limits on plan loans.

The maximum loan amount that was available to you was increased to $100,000 (reduced by the highest outstanding loan balance in the previous 12 months) or 100% of your vested balance in the Plan (reduced by the current outstanding loan balance, if any), whichever is less. The higher limits apply only to loans received during the period beginning on March 27, 2020, and ending on September 22, 2020.

One-year suspension of loan payments.

Payments on Plan loans due on or after March 27, 2020, and ending on December 31, 2020, may have been suspended for one year by the Plan Administrator.

If I am a beneficiary subject to distribution under the five-year rule described in my SPD, does 2020 count towards determining the deadline for receiving a distribution?

If you are or were using the five-year rule for distributions, 2020 does not count toward determining the end of the five-year period. For example, if the Participant died in 2018, you would have until December 31, 2024, instead of December 31, 2023, to deplete your account under the Plan.

If I am married, did my spouse have to provide consent if I did not receive a 2020 required payment or provide consent when I began payments again in 2021?

Your spouse's consent may have been required to either stop required payments for 2020, begin payments again in 2021, or both. You may check the SPD previously provided to you to determine if the spousal consent rules apply to the Plan and, if so, your Plan Administrator can tell you whether spousal consent was needed to stop and/or re-start required distributions.

If I received a 2020 Required Distribution or Extended 2020 RMD, could I have rolled over my money into another retirement plan?

You could have chosen to roll over your distribution to another eligible retirement arrangement.

DEFINITIONS

2020 Required Distributions – The 2020 Required Distributions include RMDs that would have been distributed to you or your beneficiary for 2020, or RMDs that would have been distributed to you or your beneficiary in 2020 for 2019.

Extended 2020 RMD – One or more payments in a series of annual payments that are expected to last for your life, the joint lives of you and your beneficiary, or a period of at least 10 years.

Qualified Individual – For purposes of coronavirus-related distributions and loans, you will be a Qualified Individual if

i. you were diagnosed with COVID-19 by a test approved by the Centers for Disease Control and Prevention (including a test authorized under the Federal Food, Drug, and Cosmetic Act);

ii. your spouse or dependent was diagnosed with COVID-19 by such a test; or

iii. you experienced adverse financial consequences as a result of being quarantined, being furloughed or laid off or having work hours reduced due to COVID-19, being unable to work due to lack of child care due to COVID-19, closing or reducing hours of a business you owned or operated due to COVID-19, having a reduction in pay (or self-employment income) due to COVID-19, or having a job offer rescinded or start date for a job delayed due to COVID-19, your spouse or a member of your household being quarantined,

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being furloughed or laid off, or having work hours reduced due to COVID-19, being unable to work due to lack of childcare due to COVID-19, having a reduction in pay (or self-employment income) due to COVID-19, having a job offer rescinded or start date for a job delayed due to COVID-19, closing or reducing hours of a business owned or operated by your spouse or a member of your household due to COVID-19, or other factors as determined by the Secretary of the Treasury.

A "member of your household" is someone who shares your principal residence.

SECURE 2.0 ACT

ELIGIBILITY

What age and service requirements do I have to meet before I am eligible to participate in the Plan?

For purposes of determining your eligibility to participate in the Plan for Deferrals on or after the first day of the Plan's 2025 Plan Year, if you do not satisfy the Plan's eligibility service requirements during any eligibility measuring period, you will still satisfy the eligibility service requirements if you complete one year of eligibility service, or, if earlier, you work two consecutive 12-month periods, during each of which you work at least 500 hours. However, no 12-month period that begins before January 1, 2023 will be included for purposes of the two consecutive 12-month period determination and you must attain age 21 by the end of the two consecutive 12-month periods.

This provision is effective 01/01/2025.

☐ If you are a Military Spouse, you will be eligible to participate in the Plan no later than 2 months from the date on which your employment begins. For purposes of Matching Contributions and Profit Sharing Contributions, if applicable to the Plan, you will be immediately eligible to receive the amount of Matching Contributions and Profit Sharing Contributions that a similarly-situated Participant who is not a Military Spouse would be eligible to receive after 2 years of service and you will be 100% vested in such contributions.

This provision is effective _____.

CONTRIBUTIONS

Can I contribute to the Plan?

Catch-Up Contributions

If you are eligible to defer additional amounts to the Plan due to being age 50 or older before the end of the calendar year and your compensation is $145,000 or more for the prior year, the additional amounts you elect to defer will be contributed to the Plan on your behalf as Roth Deferrals.

Increased Catch-Up Contributions

☑ If you are eligible to make Deferrals, you may defer up to an extra $11,250 (for 2025) if you are age 60, 61, 62, or 63 before the end of the calendar year and once you meet certain 401(k) Plan limits. If your Employer has elected to operate the Plan as a SIMPLE 401(k) Plan, you may defer up to an extra $5,250 (for 2025) if you are age 60, 61, 62, or 63 before the end of the calendar year and once you meet certain SIMPLE 401(k) Plan limits. The maximum amount of this higher catch-up limit will increase as the cost-of-living increases.

This provision is effective 01/01/2025.

What if I don't make an election to contribute into the Plan?

☑ This plan will be operated with a mandatory Eligible Automatic Contribution Arrangement (EACA). If you have satisfied the eligibility requirements, but do not make a Deferral election, your Plan Administrator will automatically contribute a portion of your Compensation into the Plan as indicated below. You are not required to defer a portion of your Compensation into the Plan and may instruct your Plan Administrator to stop Deferrals or to defer a different amount by following the procedures established by your Plan Administrator.

Automatic Deferrals will be contributed to the Plan as

☑ Pre-tax Deferrals.

☐ Roth Deferrals.

In addition to employees who are newly hired or newly eligible to participate in the Plan, you will be automatically enrolled if you are a:

☐ Current employee who has met the eligibility requirements.

☑ Current employee who has met the eligibility requirements and

- ☐ you have not made a Deferral election.
- ☐ you elected to defer less than the automatic contribution percentage amount indicated below.
- ☑ you are included in the following group:
  you elected to defer less than the automatic contribution percentage amount indicated below (excluding zero-percent).

☐ You will not be automatically enrolled if you are a current employee who has met the eligibility requirements.

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Expiration of your Deferral Election

If you have made a Deferral Election, your election ☐ will ☑ will not expire.

If your Deferral election expires and you meet the conditions indicated below, your Plan Administrator will automatically contribute a portion of your Compensation into the Plan as indicated below if you do not make a new election.

☐ You have elected not to defer.

☐ You have elected to defer less than the amount your Plan Administrator will automatically contribute as indicated below or have elected not to defer.

☐ You have met eligibility requirements.

☐ You are included in the following group:

_____

_____.

☐ No.

Your Deferral election will expire on

☐ the first day of each Plan Year.

☐ the first day of each calendar year.

☐ other_____

Initial Amount of Automatic Elective Deferral

If you are automatically enrolled in the Plan, your Plan Administrator will automatically withhold and contribute to the Plan _____3_____% of your Compensation.

Automatic Deferral Increases

Your Plan Administrator will automatically increase the amount of your Deferrals by 1% of Compensation per paycheck up to a maximum rate of _____15_____%.

The automatic increase of your Deferrals will begin on the first day of the Plan Year that occurs after the anniversary of your initial Deferral date and on the first day of each subsequent Plan Year.

Will my Employer make any other types of contributions to the Plan on my behalf?

Designated Roth Contributions

☐ You may elect to have your Employer contribute the following contributions that are made to the Plan on your behalf as Designated Roth Contributions, rather than pre-tax Employer Contributions:

☐ Matching Contributions, including Qualified Matching Contributions.

☐ Profit Sharing Contributions.

☐ Safe Harbor/QACA Contributions.

☐ Qualified Nonelective Contributions.

This provision is effective _____.

If I make contributions to the Plan, will my Employer match any of those contributions?

Additional Match Availability for Qualified Student Loan Payments

☐ In addition to other types of contributions for which Matching Contributions will be made, Matching Contributions will also be made with respect to Qualified Student Loan Payments.

This provision is effective _____.

If I take a distribution from this Plan or another eligible employer plan, can I combine it with my money in this Plan?

Repayment of Qualified Birth or Adoption Distributions

If you take a Qualified Birth or Adoption Distribution from this Plan, you will be able to repay such distribution to your Plan or an eligible retirement plan to which such repayment contributions can be made. Such repayment must be made by the end of the 3-year period beginning on the day after you take that distribution. However, if you took the distribution prior to December 29, 2022, you will be able to repay the distribution until December 31, 2025. The Plan's rules regarding rollover contributions apply to these repayments. The rollover contribution rules are listed in the SPD previously provided to you.

☑ If you take a Qualified Birth or Adoption Distribution from another retirement arrangement, you will be able to repay such distribution to your Plan by the end of the 3-year period beginning on the day after you take that distribution, if the distribution

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was taken from one of the types of plans for which the Plan will accept direct rollovers. The Plan's rules regarding rollover contributions apply to the repayment of such Qualified Birth or Adoption Distributions.

Repayment of Domestic Abuse Distributions

If you take a Domestic Abuse Distribution from this Plan, you will be able to repay such distribution to your Plan or an eligible retirement plan to which such repayment contributions can be made by the end of the 3-year period beginning on the day after you take that distribution. The Plan's rules regarding rollover contributions apply to these repayments. The rollover contribution rules are listed in the SPD previously provided to you.

☑ If you take a Domestic Abuse Distribution from another retirement arrangement, you will be able to repay such distribution to your Plan by the end of the 3-year period beginning on the day after you take that distribution, if the distribution was taken from one of the types of plans for which the Plan will accept direct rollovers. The Plan's rules regarding rollover contributions apply to the repayment of such Domestic Abuse Distributions.

This provision is effective 01/01/2024.

Repayment of Emergency Personal Expense Distributions

If you take an Emergency Personal Expense Distribution from this Plan, you will be able to repay such distribution to your Plan or an eligible retirement plan to which such repayment contributions can be made by the end of the 3-year period beginning on the day after you take that distribution. The Plan's rules regarding rollover contributions apply to these repayments. The rollover contribution rules are listed in the SPD previously provided to you.

☑ If you take an Emergency Personal Expense Distribution from another retirement arrangement, you will be able to repay such distribution to your Plan by the end of the 3-year period beginning on the day after you take that distribution, if the distribution was taken from one of the types of plans for which the Plan will accept direct rollovers. The Plan's rules regarding rollover contributions apply to the repayment of such Emergency Personal Expense Distributions.

This provision is effective 01/01/2024.

Repayment of Federally Declared Disaster Distributions

If you take a Federally Declared Disaster Distribution from this Plan, you will be able to repay such distribution to your Plan or an eligible retirement plan to which such repayment contributions can be made. Such repayment must be made by the end of the 3-year period beginning on the day after you take that distribution. The Plan's rules regarding rollover contributions apply to these repayments. The rollover contribution rules are listed in the SPD previously provided to you. You may also roll over to the Plan any hardship withdrawal made from the Plan which was received no more than 180 days prior to the first day of the incident period for a disaster declared by the Federal Emergency Management Agency and not later than 30 days after the last day of such incident period when such withdrawal was to be used to purchase or construct your principal residence in a qualified disaster area, but you did not do so due to that qualified disaster.

☑ If you take a Federally Declared Disaster Distribution from another retirement arrangement, you will be able to repay such distribution to your Plan by the end of the 3-year period beginning on the day after you take that distribution, if the distribution was taken from one of the types of plans for which the Plan will accept direct rollovers. The Plan's rules regarding rollover contributions apply to the repayment of such Federally Declared Disaster Distributions.

This provision is effective 01/26/2021.

Repayment of Terminal Illness Distributions

If you take a Terminal Illness Distribution from this Plan, you will be able to repay such distribution to your Plan or an eligible retirement plan to which such repayment contributions can be made by the end of the 3-year period beginning on the day after you take that distribution. The Plan's rules regarding rollover contributions apply to these repayments. The rollover contribution rules are listed in the SPD previously provided to you.

☑ If you take a Terminal Illness Distribution from another retirement arrangement, you will be able to repay such distribution to your Plan by the end of the 3-year period beginning on the day after you take that distribution, if the distribution was taken from one of the types of plans for which the Plan will accept direct rollovers. The Plan's rules regarding rollover contributions apply to the repayment of such Terminal Illness Distributions.

This provision is effective 12/29/2022.

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Is this a SIMPLE 401(k) Plan?

☐ Yes ☑ No

Increased Deferral Limit

☐ You will be able to contribute a portion of your Compensation as a SIMPLE 401(k) Deferral once you have met the eligibility requirements and enter the Plan. The maximum dollar amount that you can contribute to the Plan each year is 17,600 (for 2024). This amount will increase as the cost-of-living increases. Deferrals (and the related earnings) are always fully vested and cannot be forfeited.

Increased Employer Contributions

☐ Your Employer has elected to make either SIMPLE Matching Contribution to the Plan on your behalf with respect to your SIMPLE 401(k) Deferrals to the Plan or Nonelective Contributions for all eligible Employees. The amount of SIMPLE Matching Contributions that will be made to the Plan will be 100% on your SIMPLE 401(k) Deferrals that are four percent or less of your Compensation. The amount of Nonelective Contributions that will be made to the Plan will be three percent of Contribution for all employees eligible to participate in the SIMPLE 401(k) Plan who earn at least $5,000 (or lesser amount indicated in the SPD previously provided to you).

This provision is effective _____.

Additional Discretionary Nonelective Contribution for a SIMPLE 401(k) Plan

For taxable years beginning after December 31, 2023, your Employer may make a Nonelective Contribution (in addition to the one described above) of the same percentage amount to all eligible Participants of up to ten percent of your Compensation with an annual maximum dollar amount of $5,000 for each Participant.

Does this Plan have lower limits for Deferrals?

☐ Yes ☑ No

If "Yes" is selected, your Employer's Plan will not permit your Deferrals to exceed $6,000 for the calendar year (for 2024) and your Catch-up Contributions (if any) cannot exceed $1,000 for the calendar year (for 2024).

Can I make Pension-Linked Emergency Savings Account (PLESA) contributions under the Plan?

☐ Yes ☑ No

If "Yes" is selected, your Employer's Plan will permit you to make short-term savings contributions to a PLESA under the Plan if you are not a Highly Compensated Employee and you are eligible to make Deferrals. The maximum you can contribute to the PLESA is $2,500 (for 2024) and contributions which would increase your total PLESA contribution balance above the year's limit cannot be made into the PLESA and would have to go into the Plan as Deferrals instead. PLESA contributions are made only as Roth Deferrals. PLESA contributions are matched in the same manner as Deferrals, but Deferrals for the year are matched first and Matching Contributions are not considered part of the PLESA. Your balance in the PLESA (contributions plus any earnings) can be withdrawn at any time. Additional information regarding the PLESA will be provided by the Plan Administrator.

This provision is effective _____.

VESTING AND FORFEITURES

Will I be able to keep my Employer contributions if I terminate employment or am no longer eligible to participate in the Plan?

Year of Vesting Service

If you satisfied the service requirements to be eligible for Deferrals by working at least 500 hours for two consecutive 12-month periods, you will be credited with a year of vesting service if 500 hours were worked during the Plan's applicable vesting period. When determining your years of vesting service for Employer contributions, no 12-month period that begins before January 1, 2021 will be included.

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DISTRIBUTIONS AND LOANS

Will I ever be required to take my money out of the Plan?

Cashouts at Termination of Employment

For purposes of distributions after December 31, 2023, the Plan has a cashout level of

- [x] $7,000.
- [ ] $1,000.
- [ ] $200.
- [ ] $_____.
- [ ] Not applicable.

This means that if your vested balance at the time you terminate from employment is less than or equal to the cashout level, you must take it out of the Plan when you terminate employment. See Question 6 to see if your Plan Administrator will pay this amount to you in cash or roll it over to an IRA on your behalf, if you do not direct your Employer otherwise.

If your Employer elected a cashout level greater than $1,000 (for example, $7,000) and your balance is between $1,000 and the cashout level, you must take your vested balance from the Plan or your Plan Administrator will roll it over to an IRA that is established for you. The amount distributed and rolled over into an IRA by the Plan Administrator (and not authorized by you) will be invested in a product designed to preserve principal and to provide a reasonable rate of return and liquidity. The IRA provider that receives the rollover may charge fees and expenses for maintaining the IRA, and these fees and expenses may be assessed directly against the assets of the IRA or billed directly to you. You will be provided with more information regarding the IRA provider if you become subject to this provision. For more information concerning the rollover procedures, the IRA provider, and the fees and expenses relating to the IRA, please contact your Plan Administrator, whose address and telephone number are found in the ADMINISTRATIVE INFORMATION AND RIGHTS UNDER ERISA section of the SPD.

If your balance is greater than $7,000, even if you terminate service, you are not required to take a payment from the Plan until you reach your Required Beginning Date. However, if your Employer chooses, your balance may be immediately distributed to you if you have separated from service and reached the later of age 62 or the Plan's Normal Retirement Age.

Rollover contributions may or may not be included in determining your balance for these cashout purposes. You may check the SPD previously provided to you to determine if such amounts are included. If you have both pre-tax contributions (Deferrals, Matching Contributions and/or Profit Sharing Contributions) and Roth contributions (Roth Deferrals and/or Designated Roth Contributions) in the Plan, special calculation rules for determining the amount to be rolled over may apply.

If your Employer did not select a cashout level above, when you terminate from employment, your balance will not be paid out of the Plan until you request a payment from your Plan Administrator, or you reach your Required Beginning Date.

Can I withdraw money from the Plan while I am still employed?

Domestic Abuse Distribution

- [x] Yes
- [ ] No

If "Yes" is selected, you may take a Domestic Abuse Distribution of up to the lesser of $10,000 or 50 per cent of your vested account balance for any situation where you suffered physical, psychological, sexual, emotional or economic abuse, including efforts to control, isolate, humiliate, or intimidate you, or to undermine your ability to reason independently, including by means of abuse of your child or another family member living in your household. Your Plan Administrator may rely upon your certification that you have met the conditions for a domestic abuse distribution described above. You must take any such distribution within 1 year of when you are the victim of such domestic abuse. Contact your Plan Administrator for more information or if you have questions.

This provision is effective 01/01/2024.

Emergency Personal Expense Distribution

- [x] Yes
- [ ] No

If "Yes" is selected, you may take one Emergency Personal Expense Distribution per calendar year for up to the lesser of $1,000 or the amount of your account balance over $1,000 for the purpose of meeting unforeseeable or immediate financial needs relating to necessary personal or family emergency expenses. Your Plan Administrator may rely upon your certification that you have met the conditions for the emergency personal expense distribution described above. If you take an Emergency Personal Expense Distribution from the Plan, you cannot take another such distribution within the following 3 calendar years unless you've fully repaid the prior distribution or contributed an aggregate amount of Deferrals and Nondeductible Employer Contributions that equals at least the amount of such distribution.

This provision is effective 01/01/2024.

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Federally Declared Disaster Distribution

☐ Yes ☑ No

If "Yes" is selected, you may take a Qualified Federally Declared Disaster Distribution of up to $22,000 for economic losses you sustained due to your home being in a designated major disaster area declared by the Federal Emergency Management Agency. You must take any such distribution on or after the first day established by the Federal Emergency Management Agency for the incident period regarding that disaster and no later than the date 180 days after the declaration of that disaster. Contact your Plan Administrator for more information or if you have questions.

This provision is effective 01/26/2021.

Terminal Illness Distribution

☐ Yes ☑ No

If "Yes" is selected, you may take a Terminal Illness Distribution from sources other than your Deferrals, Qualified Nonelective Contributions, Qualified Matching Contributions, ADP safe harbor contributions and QACA safe harbor employer contributions, if applicable, after you have provided the appropriate documentation to the Plan Administrator.

This provision is effective 12/29/2022.

Can I take a loan from the Plan because I was affected by a Federally Declared Disaster?

☐ Yes ☑ No

If "Yes" is selected, if you are otherwise permitted to take a loan(s) from your account under the Plan, you may take a Federally Declared Disaster Loan. See your SPD for other applicable loan terms.

This provision is effective 01/26/2021.

Limits on plan loans.

The maximum loan amount that is available to you is increased to $100,000 (reduced by the highest outstanding loan balance in the previous 12 months) or 100% of your vested balance in the Plan (reduced by the current outstanding loan balance, if any), whichever is less.

One-year suspension of loan payments.
If payments are due for the loan prior to 180 days after the last day of the incident period for such disaster, all loan payments may be delayed for up to 1 year and the period of such delay will not be counted toward the maximum 5-year repayment period. All such delayed loan payments will accrue interest.

What if I die before receiving all of my money from the Plan?

For purposes of distributions to your beneficiary after December 31, 2023, your beneficiary will generally have the same options regarding the form of the distribution that are available to you as a Participant. If the Plan is subject to spousal consent requirements, however, and the balance is greater than $7,000, your beneficiary may be required to take the payments in the form of a life annuity, unless the annuity has been properly waived by you (and your spouse, if applicable) during your lifetime. Your spousal beneficiary may also have the option of rolling the distribution into an IRA.

DEFINITIONS

Designated Roth Contribution – An amount contributed to the Plan as an Employer Profit Sharing Contribution or a Matching Contribution on an after-tax basis (similar to a Deferral made as a Roth contribution). You cannot elect to have Employer Profit Sharing or Matching Contributions made as Designated Roth Contributions for you unless you are 100% vested in the applicable contribution type. If you take a distribution of your Designated Roth Contributions prior to the year containing the fifth anniversary of the day such amounts were contributed to the Plan as Designated Roth Contributions, you will owe a 10% early withdrawal penalty on the earnings attributable to those contributions unless you meet the requirements for a penalty exemption. Please see your Plan Administrator for further information about the penalty exemptions.
Domestic Abuse Distributions – A limited distribution you can take from the Plan due to being the victim of domestic abuse within 1 year of any date on which you were a victim of domestic abuse by your spouse or domestic partner. This distribution is generally not subject to the 10% tax penalty.

Emergency Personal Expense Distributions – A limited distribution you can take once per calendar year from the Plan due to personal or family emergency expenses. This distribution is generally not subject to the 10% tax penalty.

Federally Declared Disaster Distribution – A limited distribution you can take from the Plan due to residing in a declared disaster area and experiencing an economic loss due to that disaster. This distribution is generally not subject to the 10% tax penalty.

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Federally Declared Disaster Loan – A loan from the Plan subject to different limitations than normal plan loans available to you (as described in the Loan Policy) if you reside in a declared disaster area and experiencing an economic loss due to that disaster.

Military Spouse – You are a Military Spouse if you are not a Highly Compensated Employee and you are married (as of the first day of your employment with the Employer) to a member of the United States uniformed services who is serving on active duty.

Qualified Student Loan Payments – You may certify by the annual deadline following the Plan Year set by the Plan Administrator that you made payments on loans taken to pay educational expenses at post-secondary education institutions. Such repayment amounts will be treated as Qualified Student Loan Payments to the extent they do not exceed the lesser of your Compensation or the Deferral limit for the year when added to your Deferrals contributed to the Plan for the year.

Required Beginning Date – When you reach age 73 (age 72 if you attained that age on or before December 31, 2022, and age 70½ if you were born before July 1, 1949), you will generally need to begin taking a portion of your balance out of the Plan each year. This distribution is called a required minimum distribution, or RMD. If you continue to work for your Employer after age 73 (age 72 if you attained that age on or before December 31, 2022, and age 70½ if you were born before July 1, 1949), you may, as permitted by the Plan, delay required distributions until you actually stop working for your Employer unless you own more than 5% of the Employer. If you own more than 5% of the Employer, you will need to begin taking payments at age 73 (age 72 if you attained that age on or before December 31, 2022, and age 70½ if you were born before July 1, 1949) even if you are still employed. The annual required distribution amount is generally based on your account balance divided by a life expectancy factor outlined in retirement plan regulations.

Terminal Illness Distribution – A limited distribution you can take from the Plan if you provide the Plan Administrator with evidence that your doctor has certified that you have an illness which would reasonably result in death in 7 years or less from the date of that certification. This distribution is generally not subject to the 10% tax penalty.

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